SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS

OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30

1. REQUISITION NUMBER	PAGE	OF
0040503534	1	61

2. CONTRACT NO.	3. AWARD/ EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE
			140G0220R0034	10/01/2020

7. FOR SOLICITATION INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER (No collect calls)	8. OFFER DUE DATE/LOCAL TIME
	Donald Downey	303-236-9331	11/02/2020 1700 ET

9. ISSUED BY CODE GDB

USGS OAG DENVER ACQUISITION BRANCH
PO BOX 25046
204 DENVER FEDERAL CENTER
DENVER CO 80225-0046

10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100.00 % FOR:

☐ SMALL BUSINESS
☐ HUBZONE SMALL BUSINESS
☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS
☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM
☐ EDWOSB
☒ 8(A)

NAICS: 541990

SIZE STANDARD: $16.5

11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED	12. DISCOUNT TERMS	13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)	13b. RATING / 14. METHOD OF SOLICITATION
☒ SEE SCHEDULE		☐	☐RFQ ☐IFB ☒ RFP

15. DELIVER TO CODE

16. ADMINISTERED BY CODE GDB

USGS OAG DENVER ACQUISITION BRANCH
PO BOX 25046
204 DENVER FEDERAL CENTER
DENVER CO 80225-0046

17a. CONTRACTOR/ OFFEROR CODE / FACILITY CODE

TELEPHONE NO.

☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18a. PAYMENT WILL BE MADE BY CODE

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	INDEFINITE DELIVERY INDEFINITE QUANTITY (IDIQ) CONTRACT CONTRACTOR DUNS: _____ CONTRACTOR CAGE CODE: _____ CONTRACTOR POC EMAIL: _____ Period of Performance: 05/01/2021 to 10/31/2026 Continued ... *(Use Reverse and/or Attach Additional Sheets as Necessary)*				

25. ACCOUNTING AND APPROPRIATION DATA

26. TOTAL AWARD AMOUNT *(For Govt. Use Only)*

☒ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☒ ARE ☐ ARE NOT ATTACHED.

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED.

☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.

☐ 29. AWARD OF CONTRACT: _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR	31a. UNITED STATES OF AMERICA *(SIGNATURE OF CONTRACTING OFFICER)*

30b. NAME AND TITLE OF SIGNER *(Type or print)*	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER *(Type or print)*	31c. DATE SIGNED
		Karen La Bouff-Kind	

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
00010	Science and Technical Support Services Contract (STSSC) Five Year Base Period 05/01/2021 to 04/30/2026 Funded per Task Order IT Approval Num: 0070024585 Product/Service Code: R425 Product/Service Description: SUPPORT-PROFESSIONAL: ENGINEERING/TECHNICAL				
00020	OPTION FOR UP TO SIX MONTHS EXTENSION in accordance with FAR 52.217-8. (Option Line Item) Product/Service Code: R425 Product/Service Description: SUPPORT-PROFESSIONAL: ENGINEERING/TECHNICAL Period of Performance: 05/01/2026 to 10/31/2026 USGS POCs: CONTRACTING OFFICER (CO): Karen La Bouff-Kind, klabouff-kind@usgs.gov 303-236-9315. CONTRACT SPECIALIST (CS)/BUYER: Don Downey, ddowney@usgs.gov 303-236-9331.				

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE 32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER ☐ PARTIAL ☐ FINAL	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT ☐ COMPLETE ☐ PARTIAL ☐ FINAL	37. CHECK NUMBER

38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT		42a. RECEIVED BY *(Print)*	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER	41c. DATE	42b. RECEIVED AT *(Location)*	
		42c. DATE REC'D *(YY/MM/DD)*	42d. TOTAL CONTAINERS

140G0220R0034

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SECTION A. SOLICITATION/CONTRACT Standard Form (SF) 1449.

SECTION B. SUPPLIES OR SERVICES AND PRICES/COSTS

Refer to Attachment 1 for the price schedule.

SECTION C. DESCRIPTION/SPECIFICATIONS/STATEMENT OF WORK

Performance-based Work Statement (PWS)

Science and Technical Support Services Contract (STSSC)

USGS NGP and NGTOC

C.1 INTRODUCTION

Background: The United States Geological Survey (USGS) is an earth science organization that serves the Nation by providing reliable scientific information to describe and understand the Earth; minimize loss of life and property from natural disasters; manage water, biology, energy, and mineral resources; and enhance and protect our quality of life. As a component of the USGS Core Science Systems Mission area, the National Geospatial Program (NGP) provides a foundation of digital geospatial data representing the topography, natural landscape, and manmade environment of the United States. NGP geospatial products and services can be incorporated into decision making and geospatial operational activities. NGP data and derived products and services can be accessed through The National Map.

The National Map is a collaborative effort among the USGS and other Federal, State, and local partners to improve and deliver topographic information for the Nation. The National Map contains a suite of map and data products and services that provide access to base geospatial information to describe the landscape of the United States and its territories. Geographic information available through The National Map includes boundaries, elevation, geographic names, hydrography, land cover, orthoimagery, structures, and transportation. The National Geospatial Technical Operations Center (NGTOC) is the operational component of the NGP which provides data acquisition, data management, data inspection, product generation, delivery system, customer support, product specifications, custom software development, applied research, and basic research.

The USGS NGP and NGTOC have a requirement for non-personal science and technical support services necessary as part of the mission support. Services anticipated under this requirement are primarily to be performed on-site but may include requirements performed off-site upon approval of the Government.

This is a stand-alone Indefinite Delivery Indefinite Quantity (IDIQ) STSSC Contract for placing Firm-Fixed-Price and Labor-Hours Task Orders for supporting NGTOC and NGP needs and requirements; which have location in Rolla, MO Denver, CO & Reston, VA.

Historically, the Science and Technical Support Services (STSSC) for USGS NGP and NGTOC have been provided by the incumbents under the following Indefinite Delivery Indefinite Quantity (IDIQ) contracts. The publicly available information for these incumbents' contracts and the associated task orders is found in the Federal Procurement Data System (FPDS)-Next Generation (NG).

Contract ING16PC00003 with CHEROKEE NATION TECHNOLOGIES, L.L.C. (CNT)

https://www.fpds.gov/ezsearch/search.do?indexName=awardfull&templateName=1.5.1&s=FPDS.GOV&q=inG16PC00003

Contract 140G0218D0001 with XCELLENT TECHNOLOGY SOLUTIONS, INC. (XTS)

https://www.fpds.gov/ezsearch/fpdsportal?indexName=awardfull&templateName=1.5.1&s=FPDS.GOV&q=140G0218D0001

The intent of this solicitation is to award a stand-alone single award indefinite delivery/indefinite quantity (IDIQ) contract for science and technical support services at USGS NGP and NGTOC offices.

C.2 PLACE OF PERFORMANCE AND PERFORMANCE HOURS

Perform science and technical support services (STSS) at USGS NGTOC and NGP offices.

NGTOC http://ngtoc.usgs.gov/	Rolla	MO
NGTOC http://ngtoc.usgs.gov/	Denver	CO
National Geospatial Program https://www.usgs.gov/core-science-systems/national-geospatial-program	Reston	VA

Based on FAR 7.108 Additional requirements for telecommuting, limited work may be performed off-site only upon approval of the Government. This will be evaluated on a case-by-case basis, depending on the requirements of the task order. When the Contractor staff does not work on-site, the Contractor shall ensure all Government Information Technology (IT) security requirements are met at no additional cost to the Government.

Normal workdays and duty hours under this contract are Monday through Friday, between 6:00am and 7:30pm, local time. The contractor shall schedule work hours of all personnel in a manner that will provide maximum responsiveness to the Government's requirements. Work performed by Contractor employees, outside the normal workdays and duty hours will be subject to the approval of the Contracting Officer's Representative (COR). On a case by case basis overtime may be authorized, however prior approval shall be obtained from the Contracting Officer.

C.3 PERFORMANCE WORK STATEMENT

Independently, and not as an agent of the Government, the Contractor shall provide all plant, equipment, labor and materials (unless otherwise provided herein) necessary to provide Science and Technical Support Services necessary to accomplish the mission of the USGS. The Contractor shall perform work under this contract only as directed in task orders authorized by the USGS Contracting Officer. It is impossible to determine the number or duration of task orders, and there is no assurance of a steady stream of work. Task orders will specify the specific scope of work, materials, performance schedules, deliverables, and support services required.

THE CONTRACTOR SHALL PROVIDE:

Science and technical support services required are outlined under the major requirements listed below:

1. Program Management Services
2. Technical Writing and Information Management
3. Computer Systems Administration, Operations, and Maintenance
4. Geospatial Applications, Modeling, and Associated Technologies
5. Web and Database GIS Applications Development
6. Technical Project Management and Meeting Support

1. Program Management Services

The contractor shall perform the following tasks in support of the USGS Program Management services/activities:

a. The on-site Program Management Services are required as a separate task order. Any on-site Program Management would be responsible for the overall management of the subject contract and supervision of contractor staff carrying out the work authorized by task orders issued under the contract. The Program Management (Key Personnel) is a direct cost for this contract and shall serve as liaison between contractor staff and the Government COR and Task Order Manager(s), ensuring all the contractual requirements, objectives and operational requirements are met. The Program Management may be physically located at the Rolla, MO or Denver, CO site.

b. The Contractor shall provide the necessary experienced Program Management to accomplish overall management of the contract and the task orders as required. Responsibilities shall include organizing, managing, and administering the contract, recruitment, retention, track deliverables, and assignment/supervision of staff.
c. Independently, and not as an agent of the Government the Contractor shall: Organize, direct, coordinate and schedule all Contractor support task and support functions. Duties include the formulation and review of project feasibility studies; review of work performed for all tasks; consolidation and submission of job estimates; implementation of standard operating procedures, security measures, safety regulations; recruitment of technical personnel needed for task order support; preparation of monthly, quarterly, and annual reports and logs; and organization, direction, and coordination of off-site tasks performed at secondary sites. The Contractor is required to track contract personnel, task orders, due dates, and financial data to be provided to the COR and Task order Manager(s).
d. The Program Management will interface with Government management personnel and user representatives as well as act as the liaison between the Government and Contractor personnel. The Program Management shall exercise overall management responsibility for contract efforts, receive technical direction, and handle problems arising under the contract. Responsible for coordinating matters of mutual concern with the COR and Task Order Manager(s).
e. The Program Management shall be responsible for the recruitment, hiring, and performance of all supervisory duties necessary to maintain qualified staff to complete task orders used under this contract. Program management is responsible for employee training and career development; assuring conformance with Government security requirements; assisting in the maintenance of a safe and secure environment; and providing information and assistance to employees regarding benefits. The Program Management will be presented with various types of task orders, the role as Program Management shall review and analyze the task order requirements, determine appropriate contractor support categories, level of effort, projected timeframes, and related costs. This information is then provided, in writing, to the Contracting Officer and the COR. The Program Management shall participate in negotiations by offering counter proposals and justifications. The Program Management assures that all legal requirements are met and that projects are managed according to the terms of the contract, the statements of work and Government policies.
f. If on-site Project-Management Services are required to oversee a specific task order, the Government may issue a separate task order and the scope of services for the Project-Management will be determined at the task order level.

2. Technical Writing and Information Management

The contractor shall perform the following tasks in support of the USGS information management activities:

a. Perform technical writing, including the writing and editing of USGS products for targeted technical and lay audiences, proofreading of draft and final documents, abstracting, entering, and editing information into computer databases, attending meetings and workshops to record, synthesize, and document meeting discussions, results, and technical information that relate to USGS products, reports, and publications, and developing, revising, and implementing documentation standards and procedures to comply with Government policy and regulations.
b. Comply with established standard operating procedures and guidelines for performing information management functions.
c. Provide support for the USGS implementation of science data life cycle management in terms of science information standards; content acquisition and management strategies; metadata creation services; using appropriate standards and best practices; use and adoption of digital object identifiers; adoption and best practices for data citations; use and management of controlled vocabularies and thesauri; information governance strategies; and distributed science content management within a Federal Agency.
d. Provide support for information science research related to the analysis, collection, classification, management, and dissemination of USGS science data, publications, and other digital media.
e. Provide administrative and logistical support to government-sponsored training events.

3. Computer Systems Administration, Operations and Maintenance

The contractor shall provide, support, and perform administration and the operation and maintenance of USGS on-site computer facilities, and Cloud infrastructure. In order to effectively and efficiently operate and maintain the computer facility and the wide variety of hardware and software systems, the contractor shall provide the following support services:

a. Provide technical support and management of on-site computer facilities, including operations and maintenance support on printers, plotters, desktops, laptops, servers, storage systems, network hardware, cellular phones and tablet computers, and other portable computer devices.
b. Maintain and install all IT-related equipment, including peripherals, printers, plotters, workstations, laptops, storage systems, network hardware, cellular devices, tablets, and other portable computer devices owned or leased by the Government. This may entail performing minor repairs on peripheral equipment and/or contacting equipment manufacturers and scheduling the necessary repair work.

c. Maintain and install operating system software, virtualization software, utility software, and library software in terms of required security updates, error corrections, revision updates, and documentation for Platform and Management, Content and Communications and Operation and Professional applications.
d. Utilize scripting and automation to maintain OS and software for on-site and cloud systems.
e. Maintain the various software and geospatial application programs and capabilities developed and/or used to support program goals and activities. This may entail installation, set-up, and support of on-site equipment loaned to off-site facilities or transported to off-site locations for demonstration purposes.
f. Perform routine system operation functions, such as installing required security updates, importing and exporting digital media, installing cables, workstations, laptops, servers archiving and restoring digital data files, and performing daily, weekly, and monthly backups of identified systems and servers. Transfer and retrieve data from on-line computer, cloud, or digital media, transferring data to off-site disaster recovery and archive sites, restoring system integrity following fatal errors or system crash, product maintenance, and other related tasks.
g. Provide user guidance, orientation, training, and support services related to computer operations. Troubleshoot system problems and equipment malfunctions for users and recommend/implement appropriate solutions. Provide technical assistance to users in person, via telephone or remote connection, for operating systems, utilities, and hardware configurations.
h. Maintain operating system manuals and system hardware manuals, procedures, guidelines and logs.
i. Comply with established operating, safety, and security standards, procedures, and Federal regulations relating to computer operations. Ensure Compliance with security and regulatory requirements defined by OMB mandate, the National Institute of Standards and Technology (NIST), and the Federal Information Security Management Act (FISMA); as communicated in Department of the Interior policy and U.S. Geological Survey compliance guidance. Maintain at minimum a fully successful rating on monthly vulnerability management reports.
j. Develop and/or modify Standard Operating Procedures (SOP) as needed to codify and/or improve operational performance and support security and regulatory requirements
k. Provide support of cartographic, mapping, and database development programs. The contractor shall install, update and maintain software needed to integrate digital databases with GIS hardware and software.
l. Administer phone system by adding and removing phone numbers, running cabling as needed. Contractor will maintain telecom closets to include cable management and proper documentation.
m. Provide LAN, WLAN, and telephone administration and management to ensure maximum up time and optimal performance. Serve as a point of contact for DOI Network Operations Center a.
n. Provide technical support for scientific high-performance computing platforms and distributed science-based networks.
o. Provide support for usability analysis of science tools/systems, statistical analysis, user analysis, search engine optimization.
p. Perform efficient resource optimization of both hardware and software systems in multiple environments.
q. Perform security reviews of all systems on a scheduled basis. Contractor will ensure security compliance of all the systems with all security standards and policies imposed by Department (DOI) of the Interior and United States Geological Survey (USGS).
r. Provide detailed documentation describing architecture and implementation details of all systems in multiple environments. Contractor will provide supporting documentation including, but not limited to architectural diagrams, cross-team and cross-environment dependency diagrams, and flow diagrams.
s. Develop and promote the use of Infrastructure as Code (IaC) routines and best practices for efficient hardware and software resource management across multiple environments. Contractor will develop and maintain automation pipelines, configuration management, and Continuous Integration and Continuous Deployment (CI/CD) workflows including, but not limited to Ansible, git, Chef, puppet, Terraform, Packer, aws-cdk, CloudFormation, and aws-cli.
t. Develop and implement efficient cross-environment migration plans supporting all development teams' requirements.
u. Develop, implement, supervise and monitor cross-environment storage solutions with efficiency and cost minimization in mind. Contractor will provide detailed storage metrics, and analytics, and will work on implementing the storage Standard Operating Procedures (SOP) in multiple environments.

4. Geospatial Applications, Modeling, and Associated Technologies

The contractor shall provide support to geospatial applications, modeling, and associated technology by providing the following services:

a. Perform a complete suite of GIS tasks and technical support using GIS software including, but not limited to ArcGIS, ArcGIS Extensions, ArcGIS Pro, ERDAS, ENVI, Geoserver, Mapserver, QGIS, and other open source and commercial supporting software. Install, update, and manage software for GIS and related tasks (e.g. GPS, image processing, modeling, scientific computer data processing, etc.).

b. Acquire, evaluate, create, edit, and manage vector and raster GIS datasets.
c. Perform data entry and verification for vector and raster datasets (e.g. tablet digitizing, on-screen digitizing, and raster-to-vector conversion) spreadsheets (e.g. Microsoft Excel), databases (e.g. Microsoft Access), tables, charts, classification schemes, soft-copy and hard-copy map products, and other formats for spatial and non-spatial data.
d. Utilize existing software and recommend and implement new software concepts and programs to further GIS-related data acquisition, analysis, modeling, management, metadata development, and use.
e. Develop, access, implement, use, and make available for general use image servers, map services, and related technologies to provide quick and efficient use of large datasets external and internal.
f. Provide the full range of relational database management implementation including design, development, maintenance, analysis, documentation, and support utilizing programs such as Microsoft Access, MySQL, and PostgreSQL for spatial and non-spatial applications including managing data; defining database file descriptors; structuring, building, merging, and documenting database files; transferring database files to a variety of formats and media; and archive.
g. Perform the full range of image processing tasks (e.g. orthorectification; supervised, unsupervised, and hybrid classification) utilizing software such as ERDAS Imagine and ENVI +IDL, and imagery of varying spatial, spectral, radiometric, and temporal resolutions including panchromatic, multi-spectral, hyper-spectral, and ultra-spectral imagery. Perform automated image feature extraction using software such as ENVI EX and Feature Analyst.
h. Perform data entry tasks essential for creating FGDC and ISO-compliant metadata which meets sanctioned Content Standards; analyze metadata for quality and enhance as needed using manual or automated procedures; interview scientists as needed to create metadata that is suitable for and is served in USGS metadata portals; maintain data, code, and documentation of relational databases that facilitate metadata tasks; provide programming expertise (e.g. Python, VBA, .NET) for the evaluation and enhancement of metadata; and provide training and support for metadata development and maintenance.
i. Maintain hard-copy records, emails, plot files (e.g. ArcGIS service definitions and .msd/.mxd files), unique datasets, and associated documentation for use in Scientific Case Files and archives.
j. Use and maintain supplies and equipment (e.g. scanners, plotters, printers, screen digitizers, and GPS equipment) required for the wide variety of GIS and GIS-related tasks.
k. Comply with established standard operating procedures, guidelines, user manuals, and quality control standards.

5. Web, Database, and GIS Application, Development

The contractor will perform the following tasks in support of Web, Database, and GIS Application Development activity by providing the following services:

a. Establish requirements gathering and communications protocols with business owner(s), product owner(s), product champion(s) and customer base.
b. Design and implement agile and iterative feature definition, test, and release procedures.
c. Document and implement software release schedules with product owner.
d. Design work plans for software and infrastructure build and release with development staff.
e. Organize issue tracking and conflict resolution discussions with development staff.
f. Design work plans for software and infrastructure documentation and test with general support staff.
g. Design, implement, manage, and maintain cloud and server-based web infrastructure, including but not limited to Amazon Web Services, Apache Web Servers, Tomcat Applications Servers, network storage units, cluster management software, configuration management software, and application deployment software, based on development staff needs.
h. Implement Continuous Integration/Continuous Deployment (CI/CD), Infrastructure as Code, Automated Deployment, and Automated Testing protocols based on best-practices promulgated by the NGTOC IT cloud architecture team.
i. Design, and implement cloud and web-compatible data synthesis, analysis, visualization and management solutions utilizing web development/database technologies including but not limited to PostgreSQL, MySQL, SQLServer, MongoDB, Open Layers, JAVA, JQuery, Java Server Faces, JavaScript, CSS, Solr, Lucene, Spring, Microsoft .NET, visual basic .net, Windows OS, Linux OS, html, xml, and RDF, consuming LDAP and other authentication services, and ensuring adherence to NIST/DOI/USGS security policies/practices, Open GIS Standards, and other best practices.
j. Design and implement cloud and web-compatible geospatial data management manipulation and presentation options, and manage and maintain OGC-compliant geospatial server-based applications including but not limited to ESRI ArcGIS Server, ESRI GeoPortal, GI-CAT, PostGIS, Map Server, and GeoServer, and other open source CSW and geospatial support tools based on development staff needs.
k. Design and implement cloud and web-compatible modeling options, manage and maintain model servers, including but not limited to supporting R, Java, C, and C++, based on development staff needs.
l. Design, develop, and deploy production-level cloud and web applications using approved development scaffolds and frameworks, based on business assessments. The frameworks may include Django, React, Node, jQuery, Java, Grails, PHP, Drupal, Python, and perl.
m. Provide support of cartographic, mapping, and database development programs. The contractor shall develop and maintain software needed to integrate digital databases with GIS hardware and software. This shall include reformatting data and enhancing or developing mapping software to meet specific needs or applications

n. Ensure all generated source code exists and is maintained in the USGS version control system.
o. Ensure all development and support tasks, goals, and assumptions are documented in the tracking system.
p. Design and incorporate unit tests in all development projects.
q. Design and incorporate a coordinated build process for all development projects.
r. Document and implement test procedures for all development projects.
s. Design, build, and implement User Help, Tutorials, and training materials for all development projects. Provide hands-on instruction, training, demonstrations of software capabilities, operational structures, and feature potential.
t. Generate and maintain time tracking reports on all project activities.
u. Comply with established operating procedures and guidelines for software and infrastructure management and support.
v. Provide user guidance, orientation, training, and support services related to developed applications. Troubleshoot application problems and unexpected behaviors and recommend/implement appropriate solutions. Provide technical assistance to users via telephone, or travel to a partner site as required for application coordination.

6. Technical Project Management and Meeting Support

The contractor shall support technical project management and meetings by providing the following services:

a. In collaboration with subject matter experts, document project scope, goals, objectives and functional requirements; develop a set of tasks, dependencies, and schedule required to complete a given objective and identify risks and mitigation.
b. Author project management documentation based on information gathered from the cognizant staff; monitoring of project progress in relation to the plan; status reporting of project progress; hosting meetings to address mitigation when a project is behind or at risk.
c. Advise and train staff in applying project management methods and in the use of project management tools such as Microsoft Project and Atlassian Jira suite towards the objective of improving project management practices overall.
d. Develop meeting agendas, schedule meetings, facilitate meetings, take meeting notes, record action items, and do post-meeting assessments. The overall objective is to have very effective meetings. The purpose of the supported meetings are related to projects and activities that the contractor may or may not be serving as a technical project manager.

C.4 REPORTING REQUIREMENTS (AS APPLICABLE AND IF NEEDED WILL BE DEFINED FURTHER IN THE TASK ORDER) SEE SECTION F FOR REPORTING REQUIREMENTS.

Reporting requirements will be defined in each task order. Deliverable items at the task order level will vary depending on the nature of the requirement. Items may include, but not limited to: source code; technical documentation; compiled databases; scientific reports and manuscripts, GIS data; meeting notes and project status updates; technical diagrams; documentation packages for computer programs; web designs and pages; maps and figures; computer software; man-hour and cost reporting requirements.

All reports and deliverables submitted at the contract level shall include a reference to the task order number. Deliverables for the Program Management functions provided under this contract may include:

1. Contractor shall provide a monthly status report which identifies tasks in progress or completed during the reporting period and man-hours associated with each task, projected workload for the coming reporting period, problems encountered and/or other issues. Commensurate with the monthly status report, the contractor shall prepare a monthly Performance and Cost Report, depicting monthly and cumulative hours and dollars expended by labor category, hours/dollars remaining available on the task order, and a statement as to whether there are sufficient hours/dollars available to complete the requirement. If obligated funds are insufficient to complete the task, the contractor shall provide an estimate of additional funds needed. Contractor shall not be required to perform, and the Government shall not be obligated to pay for any tasks without sufficient funding.

2. Monthly reports of financial information and status on all task orders, including authorized CLINs, amount of obligation, labor hours worked, travel expenses and balances of funds for all CLINs.

3. Technical project plans.

4. Maintain financial records necessary to substantiate charges made against task orders issued on the contract.

C.5 TRAVEL REQUIREMENTS FOR CONTRACTOR EMPLOYEES

The Contractor may travel as required to support program tasks. All travel shall be performed under authorized task orders and approved by the COR prior to the date the required travel is to begin. The Contractor shall make all travel arrangements. Short notice travel requirements shall be coordinated with and approved by the COR and Task Order Manager(s). U.S. and international travel may be required.

The Government will reimburse the Contractor for travel expenses of its employees in accordance with the Federal Travel Regulations that apply to Federal Employees travel. A not-to-exceed amount will be included in each Task Order if travel is included in the requirement. (See GS1359 Travel and Transportation).

C.6 IMMUNIZATIONS

It is not expected, but if task orders do require immunizations, vaccines, or prophylactic medications (e.g., anti-malarial, virus, etc.) the following applies. Contractor shall be required to obtain all required immunizations at the Contractor's own expense. The Government shall not be liable for the Contractor's failure to obtain all required immunizations or medical reactions to the immunization. Access to medical facilities in cases of emergency while in foreign locations may not be equivalent to that in the U.S. Cost for doctor visits, prescriptions, immunizations or vaccinations are a Contractor cost and are not reimbursable. The Contractor agrees to indemnify the Government and its officers, agents, and employees against all liability including costs and expenses, for any health-related issues arising from the performance under this contract, except as otherwise provided in the task order.

C.7 TRAINING

In performing its responsibilities under the contract, the Contractor shall use only fully trained, experienced, and technically proficient personnel. The Contractor at its own expense shall perform and maintain all professional and general training. No reimbursement will be made by the Government for training required to qualify contractor employees for any requirements specified in this contract. Specialized training required to accomplish specific work assignments directed by the Government may be billed to the Government only when (1) the training is preapproved by the COR; (2) the specific training is in direct support of work assignments performed under this contract.

C.8 RELOCATION

The Government will not reimburse the Contractor for any costs, associated with the permanent or temporary relocation of personnel employed by the Contractor to perform work under this contract.

C.9 MEETINGS, BRIEFINGS, AND WORKSHOPS

As tasked by the Government, the Contractor shall participate in meetings, reviews, briefings, and working groups. Whenever possible, briefings to be given or prepared by the Contractor will be scheduled in advance by the Task Order Manager (TOM). The TOM and appropriate project management personnel will specify briefing content and requirements. The Contractor shall prepare briefing charts, status reports, schedules, and minutes of Government meetings as directed by the COR or designated Task Order Manager(s).

As tasked by the Government, the contractor shall plan, organize, coordinate, schedule, and conduct meetings, workshops, training courses, and conferences to meet Government requirements. These may occur at Government installations or at other locations. (See GS1350 Supervision of Contractor Employees).

C.10 PUBLICATIONS AND STANDARDS

The contractor shall utilize the following documents in performance of contract work. Unless a specific issue or revision is indicated, the issue in effect on the date of the contract award will apply.

USGS Occupational Hazards and Safety Procedures Handbook (SM 445-2-H)

(http://www.usgs.gov/usgs-manual/handbook/hb/445-2-h.html)

DOI Safety and Occupational Health Manual (DM485)

(http://www.doi.gov/safetynet/)

USGS Section 508 Standards (http://www.section508.gov)

Any publications and standards not listed will be added at the task order level.

C.11 QUALITY CONTROL REQUIREMENTS

Note: These are general quality control requirements and further control will be defined at the task order level, if necessary.

Prior to performance, the Contractor shall establish and maintain a complete Quality Control Program (QCP) to ensure that the requirements of the contract and each task order are provided as specified. The Government will have a Quality Assurance Plan (QAP) to ensure contractor progress is made and to assess the contractor's performance under various task orders. The Government will document surveillance activities. When performance falls below acceptable quality levels as defined in each task order the designated contractor representative or Program Management (PM) will be notified and appropriate corrective actions implemented. Possible remedies include the contractor being required to perform the work over, rework or the government may withhold payment for work that's not in compliance with requirements.

The QCP deliverable is due prior to performance and contingent upon government acceptance. This is not part of the proposal submission and not a basis for award.

C.12 GOVERNMENT FURNISHED PROPERTY

1. The Government shall provide, without cost, the facilities, equipment, materials and services listed below or as listed in task orders. The Government furnished property and services provided as part of this contract shall be used only by the contractor only to perform under the terms of this contract. No expectation of personal privacy or ownership using any USGS electronic information or communication equipment shall be expected. All applicable licenses shall be obtained by the contractor. All required maintenance of GFP shall be accomplished pursuant to FAR Clause 52.245-1 Government Property.

2. The Government shall provide facilities to any location listed in Section C.2.: Use of the facilities by contract employees will include all utilities, telephone, janitorial services and furniture for contractor employees performing on tasks. The Government may have other Government owned/leased facilities that may be used in the performance of this contract. If other facilities are to be used, the contractor will be notified in writing.

3. As applicable, the Government may provide the following equipment:
   a. A suitable working environment (i.e. office furniture and administrative supplies)
   b. A personal computer, and/or tablet with access to appropriate host computer and auxiliary hardware and software required in the performance of this contract.
   c. Headsets, cell phones and maintenance agreements for such equipment when determined to be applicable by the COR. The Government will replace items that are determined to be beyond economical repair by the COR unless damage or loss is due to contractor negligence.

4. Materials. The government shall furnish basic reference manuals, and any revisions, updates, and changes thereto for use by the contractor.

5. Use of Government Property.
   a. Telephones. Government telephones are provided for use in conducting official business. Occasionally, contractor employees are permitted to make calls that are considered necessary in the interest of the Government.
   b. Mail/Postage. Contractor employees shall not have their personal mail directed to Government office or use Government-furnished postage for personal benefit.
   c. Electronic Mail (E-mail). All e-mail access and use by contractor employees shall be in support of the individual's official duties and task responsibilities. All information created, transmitted, received, obtained, or accessed in any way captured electronically using USGS e-mail systems is the property of the Government. Contractor employees will have clear identification in e-mail signature block that identifies themselves as contract employees in support of USGS.
   d. Copiers. Copiers are to be used to copy material for official Government business only in performance of the task.

e. Fax Machines. Contractor employees shall not use fax machine for other than official government business in support of the task.
f. Computers and Internet. All Internet and electronic media access accomplished by contractor employees (utilizing Government furnished equipment) shall be for official Government business and in support of task requirements. Use of computer systems for personal use is prohibited.

6. Return of Government Property. All Government property, data, information, etc., used by the Contractor in conjunction with performance under this contract, whether furnished by the Government to the Contractor or acquired by the Contractor with Government funding shall be delivered/transmitted to the COR within 14 calendar days of completion of the applicable task or per instructions from the CO.

C.13 OTHER DIRECT COSTS (ODC)

Any Other Direct Costs (ODC's) will be identified and approved by the COR and Task Order Manager(s) at the task order level.

C.14 CONSERVATION OF UTILITIES AND SUSTAINABILITY PRACTICES

1. Government's policy is to acquire services that promote energy and water efficiency, advance the use of renewable energy products, and help foster markets for emerging technologies. The contractor shall instruct employees in conservation practices. The contractor shall be responsible for operating in a manner to preclude the waste of utilities and resources, which shall include:

   a. Lights shall be used only in areas where and when work is actually being performed.
   b. Mechanical equipment controls for heating, ventilation, and air conditioning systems shall not be adjusted by the contractor or by contract employees unless authorized.
   c. Water faucets or valves shall be turned off after the required usage has been accomplished.

2. Paper shall be printed double sided and recycled rather than disposed of in trash containers. Any paper purchased should have 30% postconsumer fiber.

3. Pursuant to Executive Order 13514, Federal Leadership in Environmental, Energy, and Economic Performance and Executive Order 13423, Strengthening Federal Environmental, Energy and Transportation Management, the USGS is committed to managing its facilities in a manner that will promote the natural environment and protect the health and well-being of Federal employees, contractor service providers and the public. In the performance of work under this contract, the Contractor shall exert its best efforts to provide its services in a manner that will promote the natural environment and protect the health and well-being of Federal employees, contract service providers and visitors using the facility. Green purchasing or environmentally preferable contracting includes the initiatives described below:

   a. Alternative Fuels and Vehicles are described at http://www.afdc.energy.gov/afdc/
   b. Biobased Products are described at http://www.biopreferred.gov/
   c. Energy efficient products are described at http://energystar.gov/products for Energy Star products and at http://www.eere.energy.gov/femp/procurement for FEMP designated products
   d. Environmentally Preferable Computers are described at http://www.epeat.net
   e. Non-Ozone Depleting Products are described at http://www.epa.gov/Ozone/snap/index.html
   f. Recycled Products are described at http://epa.gov/cpg
   g. Water efficient products are described at http://epa.gov/watersense/

To the extent that the services provided by the Contractor require the provision of any of the above types of products, the environmentally preferable type of product is to be furnished unless that type of product is not available competitively within a reasonable time, at a reasonable price, is not life cycle cost efficient in the case of energy consuming products, or does not meet reasonable performance standards. The clauses at FAR 52.223-2, Affirmative Procurement of Biobased Products under Service and Construction Contracts, 52.223-15, Energy Efficiency in Energy Consuming Products, and 52.223-17 Affirmative Procurement of EPA-Designated Items in Service and Construction Contracts, require the use of products that have biobased content, are energy efficient, or have recycled content.

C.15 FEDERAL INFORMATION SECURITY MANAGEMENT REQUIREMENTS

(Some tasks may require different security levels which will be defined at the task order level)

Contractors who have access to USGS information must comply with Federal Information Security Management Act (FISMA) as mandated by the E-Government Act of 2002. FISMA requires each Federal agency to develop, document, and implement a program to provide information security for the information and information systems that support the operations and assets (data) of the agency including those provided or managed by another agency, contractor, or other sources. Listed next are the specific FISMA requirements that the Contractor must comply with Attachment 3 FISMA Requirements.

C.16 ADD/DELETE IN-SCOPE LABOR CATEGORIES

The evolving nature of Scientific and Technical Support Services (STSS) may require the addition and deletion of in-scope labor categories to the Attachment 1 Price Schedule.

The Government may add in-scope labor categories to the price schedule via a bilateral modification to this contract. The Contracting Officer must determine that additional labor categories are in scope of STSS before the labor category(ies) can be added to the price schedule. The Contracting Officer must determine the price(s) for the added labor category(ies) are fair and reasonable.

The Government may unilaterally delete labor categories from the price schedule based on the Government's needs.

SECTION D. PACKAGING AND MARKING

This section intentionally left blank.

SECTION E. INSPECTION AND ACCEPTANCE

E.1. 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

The contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at the following addresses:

http://www.acquisition.gov/far http://www.doi.gov/pam/aindex.html

52.242-15 STOP-WORK ORDER (AUG 1989)

52.246-4 INSPECTION OF SERVICES – FIXED PRICE (AUG 1996)

52.246-6 INSPECTION – TIME AND MATERIAL AND LABOR HOUR (MAY 2001)

E.2. GENERAL ACCEPTANCE CRITERIA

General quality measures, as set forth below, will be applied to each work product received from the contractor unless otherwise instructed in an individual task order.

Accuracy - Work products shall be accurate in presentation, technical content, and adherence to accepted elements of style.

Clarity - Work products shall be clear and concise. Any/all diagrams shall be easy to understand and be relevant to the supporting narrative.

Consistency to Requirements - All work products shall satisfy the requirements of this contract. File Editing - All text and diagrammatic files shall be editable by the Government.

Format - Work products shall be submitted in hard copy (where applicable) and in media mutually agreed upon prior to submission, unless otherwise specified herein. Hard copy formats shall follow any specified Directives or Manuals.

Timeliness - Work products shall be submitted on or before the due date specified herein or submitted in accordance with a later scheduled date determined by the Government.

(End of clause)

E.3. QUALITY ASSURANCE

The Contracting Officer's Representative (COR), Task Order Manager(s) or designated inspector will review, for completeness, preliminary or draft documentation that the Contractor submits, and may return it to the Contractor for correction. Absence of any comments by the COR will not relieve the Contractor of the responsibility for complying with the requirements of the work statement.

Final approval and acceptance of documentation shall be by letter of approval and acceptance by COR. The Contractor shall not construe any letter of acknowledgment of receipt material as a waiver of review, or as an acknowledgment that the material is in conformance with the work statement. Any approval given during preparation of the documentation, or approval for shipment shall not guarantee the final acceptance of the completed documentation.

(End of clause)

SECTION F. DELIVERIES OR PERFORMANCE

F.1. MEETINGS, REPORTS AND OTHER DELIVERABLES

In fulfillment of this contract, the Contractor shall be required to provide deliverables at the contract and task order level, as specified in the task order statement of work. All deliverables shall be submitted to the COR, unless otherwise agreed upon.

Unless otherwise specified, the Government shall have a maximum of ten (10) working days from the day the draft deliverable is received to review the document, provide comments back to the contractor, approve or disapprove the deliverable(s). The contractor shall also have a maximum of ten (10) working days from the day comments are received to incorporate all changes and submit the final deliverable to the Government. All days identified below are intended to be workdays unless otherwise specified.

F.1.1 Monthly Status Reports

The contractor shall prepare and submit a monthly status report of all active task orders, including the information required by Section C.4.1.

F.1.2 Deliverable Table – Unless otherwise specified or agreed upon, all deliverables shall be submitted to the COR identified in Section G of this contract, with a copy of the transmittal letter to the Contracting Officer. Other deliverables, specific to task order performance, will be as specified within individual task orders.

Reference	Milestone/Deliverable	Responsibility	Date
C.4.1 F.1.1	Monthly Status Report	Contractor	Monthly

(End of clause)

F.2. TERM OF THE CONTRACT

a. The period of this IDIQ contract will be five (5) years beginning on the date of award, anticipated for May 1, 2021, through April 30, 2026, with an optional up to six-month extension. Exact dates for the base period will be provided at time of contract award.

b. This contract is a five (5) year IDIQ, for the anticipated dates shown below. This is a five-year contract.

Year One (1) – 05/01/2021 to 04/30/2022

Year Two (2) - 05/01/2022 to 04/30/2023
Year Three (3) - 05/01/2023 to 04/30/2024
Year Four (4) - 05/01/2024 to 04/30/2025
Year Five (5) - 05/01/2025 to 04/30/2026

Option for up to 6 months extension – 05/01/2026 to 11/30/2026

(End of clause)

F.3. GS0906 PLACE OF PERFORMANCE – MULTIPLE LOCATIONS, TASK ORDERS (MODIFIED) JUL 2001

The IDIQ contract awarded from this solicitation will service a designated servicing area; Rolla, Missouri, Denver, Colorado and Reston, VA.

The place(s) of performance for services ordered under this contract shall be specified on the individual task order. The Contractor is obligated to provide services at the prices shown on Attachment B at any of the locations within the awarded IDIQ's servicing or program area, as described in C.2.

(End of clause)

F.4. HOURS OF WORK

The Contractor point of contact personnel shall be available for contact by the Government between the hours of 6:00am – 7:30pm local time, Monday through Friday. Contractor personnel performing the work of a task order are expected to conform to normal operating hours, which may be specified within the task order. The Contractor shall schedule work hours of all personnel in a manner that will provide maximum responsiveness to the Government's requirements. Some personnel may be required to work a varied schedule outside of the foregoing depending on the needs of the Government. Personnel must be available to work flexible, varied schedules to meet critical deadlines when necessary, though allowance for overtime shall be addressed within each specific task order and shall require approval from the Contracting Officer.

(End of clause)

F.5. GS0919 LEGAL HOLIDAYS (JANUARY 2002)

The following legal holidays are observed by this Government agency:

New Year's Day	January 01
Martin Luther King's Birthday	3rd Monday in January
Presidents Day	3rd Monday in February
Memorial Day	Last Monday in May
Independence Day	July 04
Labor Day	1st Monday in September
Columbus Day	2nd Monday in October
Veterans Day	November 11
Thanksgiving Day	4th Thursday in November
Christmas Day	December 25

When a holiday falls on Saturday or Sunday, it is observed on the adjacent Friday or Monday, respectively.

In addition to the holidays listed above, the contractor agrees to observe leave days or closures designated by Federal Statute, Executive Order, or Presidential Proclamation.

(End of clause)

F.6. GS0924 UNSCHEDULED CLOSURES – LABOR HOURS (JULY 2001)

(a) The USGS facility where contractor employees are working may occasionally have unscheduled closures in which federal employees are dismissed on administrative leave (such as for inclement weather, holiday early closings, power outages, or other emergencies). In these cases, the Contracting Officer or COR will advise the contractor whether any of the contractor's activities are considered critical and require continued performance. In most cases, the Contractor employees not performing critical tasks will not be allowed to remain in the facility after federal employees are dismissed.

(b) If the contractor opts to treat these nonproductive hours as paid leave, these hours are billable at the established contract rates. The total number of hours billed on such days may not exceed the number scheduled for affected employees and may not include overtime hours.

(c) Paragraph (b) does not apply and nonproductive hours are not billable as direct hours worked where the contractor's accounting system normally treats leave of the type used as an indirect or fringe benefit pool expense.

(End of clause)

F.7. GS0925 UNSCHEDULED CLOSURES – FIXED PRICE (MARCH 2003)

(a) The USGS facility where contractor employees are working may occasionally be closed temporarily and federal employees dismissed, such as for inclement weather, holiday early closings, power outages, or other emergencies. In these cases, the Contracting Officer or COR will advise the contractor whether any of the contractor's activities on Government facilities are considered critical and require continued performance. In most cases, the Contractor will be required to dismiss employees at Government facilities who are performing noncritical tasks after federal employees are dismissed.

(b) If the unscheduled closure causes an increase in the cost of contract performance or if any contract term or condition is affected by the closure, the Contractor may request an adjustment pursuant to clause GS1338 Notice to the Government of Delays.

(c) Contractor performance at locations that are not affected by the unscheduled closure will not be subject to this clause.

(End of clause)

F.8. GS1338 NOTICE TO THE GOVERNMENT OF DELAYS (JUL 2001) (MODIFIED)

(a) In the event the Contractor encounters difficulty in meeting performance requirements, or when it anticipates difficulty in complying with a task order delivery schedule or any date, or whenever the Contractor has knowledge that any actual or potential situation is delaying or threatens to delay the timely performance of work, the Contractor shall immediately notify the Contracting Officer and the Contracting Officer’s Representative, in writing, giving pertinent details, provided that this data shall be informational only in character and that this provision shall not be construed as a waiver by the Government of any delivery schedule or date or of any rights or remedies provided by lawor under this contract.

(b) If the Contractor fails to respond in a timely manner to any portion of this contract or task order, delay will be attributed to the Contractor. Although the period of performance may change due to the delay, the price may be subject to a downward adjustment.

(c) If the Government delays performance of work under any task order, the period of performance and/or price may be revised upon mutual agreement between the Government and the Contractor.

(End of clause)

F.9. TELECOMMUTING

In accordance with FAR 7.108 Additional requirements for telecommuting, limited work may be performed off-site only upon approval of the Government. This will be evaluated on a case-by-case basis, depending on the requirements of the task order.

The Government shall not incur additional costs if/when the services are provided via telecommuting.

The Contractor shall pay their employees based on the location where the telecommuting work is performed in accordance with the Department of Labor's wage determination for the appropriate wage category and county/state as found at BetaSam.gov. https://beta.sam.gov/search?index=wd&keywords=&sort=-modifiedDate&wdType=sca&is_wd_even=false&is_standard=true&prevP=prevPerfNo&page=1

(End of clause)

SECTION G. CONTRACT ADMINISTRATION DATA

G.1. GS1101 CONTRACT ADMINISTRATION OFFICE

This contract will be administered by:

(a) The contracting Officer on this contract is:
Karen La Bouff-Kind
Office of the Acquisition and Grants
Denver Federal Center, DFC Bldg. 67
Denver, CO 80225
Telephone: 303-236-9315

(b) This contract specialist on this contract is and will be administered by:
U.S. Geological Survey
Office of Acquisition and Grants
Attn: Don Downey
Denver Federal Center, DFC Bldg. 67
Denver, CO 80225
303-236-9331

(c) Written communications to the Administrative Contracting Officer shall make reference to the contract number and shall be mailed to the above address.

(End of clause)

G.2. 1452.201-70 AUTHORITIES AND DELEGATIONS (SEP 2011)

(a) The Contracting Officer is the only individual authorized to enter into or terminate this contract, modify any termor condition of this contract, waive any requirement of this contract, or accept nonconforming work.

(b) The Contracting Officer will designate a Contracting Officer's Representative (COR) at time of award. The COR will be responsible for technical monitoring of the contractor's performance and deliveries. The COR will be appointed in writing, and a copy of the appointment will be furnished to the Contractor. Changes to this delegation will be made by written changes to the existing appointment or by issuance of a new appointment.

(c) The COR is not authorized to perform, formally or informally, any of the following actions:

(1) Promise, award, agree to award, or execute any contract, contract modification, or notice of intent that changes or may change this contract;

(2) Waive or agree to modification of the delivery schedule;

(3) Make any final decision on any contract matter subject to the Disputes Clause;

(4) Terminate, for any reason, the Contractor's right to proceed;

(5) Obligate in any way, the payment of money by the Government.

(d) The Contractor shall comply with the written or oral direction of the Contracting Officer or authorized representative(s) acting within the scope and authority of the appointment memorandum. The Contractor need not proceed with direction that it

considers to have been issued without proper authority. The Contractor shall notify the Contracting Officer in writing, with as much detail as possible, when the COR has taken an action or has issued direction (written or oral) that the Contractor considers to exceed the COR's appointment, within 3 days of the occurrence. Unless otherwise provided in this contract, the Contractor assumes all costs, risks, liabilities, and consequences of performing any work it is directed to perform that falls within any of the categories defined in paragraph (c) prior to receipt of the Contracting Officer's response issued under paragraph (e) of this clause.

(e) The Contracting Officer shall respond in writing within 30 days to any notice made under paragraph (d) of this clause. A failure of the parties to agree upon the nature of a direction, or upon the contract action to be taken with respect thereto, shall be subject to the provisions of the Disputes clause of this contract.

(f) The Contractor shall provide copies of all correspondence to the Contracting Officer and the COR.

(g) Any action(s) taken by the Contractor, in response to any direction given by any person acting on behalf of the Government or anyGovernment official other than the Contracting Officer or the COR acting within his or her appointment, shall be at the Contractor's risk.

(End of clause)

G.3. 1452.215-70 RELEASE OF CLAIMS (JUL 1996)

(a) The CO shall insert the clause at 1452.204-70, Release of Claims, in all construction, architect and engineering, and cost-reimbursement contracts that exceed the SAT. The Release of Claims clause may be inserted in other types of contracts when the CO determines that the release is necessary to protect the interests of the Government.

(b) Form DI–137, Release of Claims, shall be used to obtain a release of claims.

G.4. TASK ORDER MANAGER

A Task Order Manager (TOM) may be designated, and identified by name, in each task order assignment issued under this contract. On behalf of the CO, COR, and other Government officials concerned, this individual will coordinate the contractor’s performance in accordance with the statement of work in the task order.

The contractor shall maintain frequent contact with the COR and designated Task Order Manager(s) throughout the performance of each task to assure that the COR is aware of all technical issues and is afforded the opportunity to provide timely technical direction/redirection of tasking in progress.

The Task Order Manager(s) is not authorized to change any delivery dates, specifications and/or statements of work, or to obligate the government to additional funds.

G.5. GS1305 CONTRACTOR PERFORMANCE ASSESSMENT REPORTING SYSTEM (DECEMBER 2015)

a) FAR 42.1502 directs all Federal agencies to collect past performance information on contracts. The Department of the Interior (DOI) has implemented the Contractor Performance Assessment Reporting System (CPARS) to comply with this regulation. One or more past performance evaluations will be conducted in order to record your contract performance as required by FAR 42.15.
b) The past performance evaluation process is a totally paperless process using CPARS. CPARS is a web-based system that allows for electronic processing of the performance evaluation report. Once the report is processed, it is available in the Past Performance Information Retrieval System (PPIRS) for Government use in evaluating past performance as part of a source selection action.
c) We request that you furnish the Contracting Officer (CO) with the name, position title, phone number, and email address for each person designated to have access to your firm's past performance evaluation(s) for the contract no later than **30 days after award.** Each person granted access will have the ability to provide comments in the Contractor portion of the report and state whether or not the Contractor agrees with the evaluation, before returning the report to the Assessing Official (AO). Information in the report must be protected as source selection sensitive information not releasable to the public.
d) When your Contractor Representative(s) are registered in CPARS, they will receive an automatically generated email with detailed login instructions. Further details, systems requirements, and training information for CPARS is available at https://www.cpars.gov/.

e) Within 60 days after the end of a performance period, the AO will complete an interim or final past performance evaluation, and the report will be accessible at https://www.cpars.gov/.
   i. Contractor Representatives may then provide comments in response to the evaluation or return the evaluation without comment.
   ii. Your comments should focus on objective facts in the AO's narrative and should provide your views on the causes and ramifications of the assessed performance.
   iii. All information provided should be reviewed for accuracy prior to submission.
   iv. If you elect not to provide comments, please acknowledge receipt of the evaluation by indicating "No comment" in the space provided, and then selecting "Accept the Ratings and Close the Evaluation".
   v. Your response is due within 60 calendar days after receipt of the CPAR. On day 15, the evaluation will become available in PPIRS-RC marked as "Pending" with or without comments and whether or not it has been closed.
   vi. If you do not sign and submit the CPAR within 60 days, it will automatically be returned to the Government and will be annotated: "The report was delivered/received by the contractor on (date). The contractor neither signed nor offered comment in response to this assessment."

f) The following guidelines apply concerning your use of the past performance evaluation:
   i. Protect the evaluation as source selection information. After review, transmit the evaluation by completing and submitting the form through CPARS. If for some reason you are unable to view and/or submit the form through CPARS, contact the CO for instructions.
   ii. Strictly control access to the evaluation within your organization. Ensure the evaluation is never released to persons or entities outside of your control.
   iii. Prohibit the use of or reference to evaluation data for advertising, promotional material, pre-award surveys, responsibility determinations, production readiness reviews, or other similar purposes.

g) If you wish to discuss a past performance evaluation, you should request a meeting in writing to the CO no later than seven days following your receipt of the evaluation. The meeting will be held in person or via telephone or other means during your 60-day review period.

h) A copy of the completed past performance evaluation will be available in CPARS for your viewing and for Government use supporting source selection actions after it has been finalized.

G.6. GS1359 TRAVEL AND TRANSPORTATION (JULY 2001)

(a) The contractor shall be reimbursed for actual transportation costs and travel allowances of contractor employees in accordance with the travel cost principle in FAR 31.205, and Government Travel Regulations. Charges exceeding the amounts established in the Government Travel Regulations for individuals engaged in comparable functions may be disallowed as unreasonable unless approved in advance by the Contracting Officer.

(b) Costs for air transportation will not be reimbursed in an amount greater than the cost of commercially scheduled economy class (tourist) air travel by the most expeditious route, except as provided in the applicable cost principles cited in paragraph (a) above.

(c) All travel itineraries not included in the contractor's approved cost proposal for the contract or individual task order must receive the prior written approval of the contracting officer.

G.7. DOI ELECTRONIC INVOICING ELECTRONIC INVOICING AND PAYMENT REQUIREMENTS - INTERNET PAYMENT PLATFORM (IPP) (APRIL 2013)

Payment requests must be submitted electronically through the U. S. Department of the Treasury's Invoice Processing Platform System (IPP).
"Payment request" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions - Commercial Items included in commercial item contracts. The IPP website address is: https://www.ipp.gov.
Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice:

A copy of the Contractor's internally generated invoice

The Contractor must use the IPP website to register, access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM will receive enrollment instructions via email from the Federal Reserve Bank of Boston (FRBB) within 3 - 5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email ippgroup@bos.frb.org or phone (866) 973-3131.
If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must

submit a waiver request in writing to the Contracting Officer with its proposal or quotation, payment requests must be submitted electronically through the U. S. Department of the Treasury's Internet Payment Platform System (IPP).

"Payment request" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions-Commercial Items included in commercial item contracts. The IPP website address is: https://www.ipp.gov.

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice:

A copy of the contractor's internally-generated invoice (Fixed Price task orders).
A copy of the contractor's internally-generated invoice, plus the Monthly Status Report (Labor Hour task orders).

The Contractor must use the IPP website to register, access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in CCR) will receive enrollment instructions via email from the Federal Reserve Bank of Boston (FRBB) within 3 - 5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email ippgroup@bos.frb.org or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation.

(End of Clause)

G.8. UNILATERAL DEOBLIGATION OF UNEXPENDED FUNDS (MAY 2013)

The contractor shall submit all invoices under each task order no later than 90 calendar days after the task order period of performance has expired, unless a request for extension has been submitted to the Contracting Officer. After 120 days has passed since the expiration of the task order performance period, the government reserves the right to issue a unilateral modification de-obligating any unexpended funds, and to initiate task order closeout procedures.

(End of clause)

SECTION H. SPECIAL CONTRACT REQUIREMENTS

H.1. GS0330 SECTION 508 APPLICABLE STANDARDS (JULY 2018)

The resources acquired in this investment must meet all applicable standards established by the Access Board in 36 CFR Part 1194, including technical, functional performance, information, documentation, and support standards. The products, services, information and data that are provided to the Government or the public as a result of this acquisition shall afford individuals with disabilities access comparable to that afforded to individuals without disabilities.

Standards applicable to this acquisition include:

__x__Software Applications and Operating Systems 1194.21
__x__Web-based Intranet and Internet Information and Applications 1194.22
__x___Telecommunications Products 1194.23
__x__Video or Multimedia Products 1194.24
__x___Self-Contained, Closed Products 1194.25
_ x__ Desktop and Portable Computers 1194.26
_ x_ Functional performance criteria 1194.31
_ x_ Information, Documentation, and Support 1194.41

The full text of the above referenced standards can be found at:https://www.access-board.gov/guidelines-and-standards/communications-and-it/about-the-section-508-standards/section-508-standards

Section 508 Compliance Standards may be further enhanced at the Task Order level.

(End of clause)

H.2. GS0339 GREEN ACQUISITION (JULY 2018)

The USGS is committed to promoting the natural environment and protecting the health and well-being of people. In the performance of work under this contract, the Contractor shall exert its best efforts to provide services in a manner that will promote the natural environment and protect health and well-being. Green purchasing or environmentally preferable contracting includes the initiatives described below:

Alternative Fuels and Vehicles are described at http://www.afdc.energy.gov/afdc/

Biobased Products are described at http://www.biopreferred.gov/

Energy efficient products are described at http://energystar.gov/products for Energy Star products and at http://www.eere.energy.gov/femp/procurement for FEMP designated products.

Environmentally Preferable Computers are described at http://www.epeat.net

Significant New Alternatives Program (SNAP) are described at http://www.epa.gov/snap/overview-snap

The Comprehensive Procurement Guidelines promote the use of recovered and recycled products at https://www.epa.gov/smm/comprehensive-procurement-guideline-cpg-program

Water efficient products and services are described at https://www.epa.gov/watersense

(End of clause)

H.3. GS1307 DIRECT AWARD UNDER THE 8(A) PROGRAM (JUN 2007)

(a) This award is made pursuant to a Partnership Agreement between the Department of the Interior and the Small Business Administration. The Small Business Administration is the prime contractor on this contract, even if not identified in Section A of the contract.

(b) The contracting activity will give advance notice to the SBA before it issues a final notice terminating performance, either in whole or in part, under the contract. The contracting activity will also obtain approval from the SBA prior to processing any novation agreement.

(c) The cognizant SBA District Office for this award is: To be provided at time of contract award

(d) The contractor will perform specified percentages of work with its own employees as described in FAR clause 52.219-14 and SBA regulations at 13 CFR Sec. 125.6. If this is an indefinite delivery contract, the contractor must submit reports to the Contracting Officer semiannually demonstrating that it has performed the required percentage to that date. The contractor is not required to meet these percentage limits for each task or delivery order, but is required to meet these limits for the combined total of all task orders issued to date at six-month intervals from the contract start date. See 13 CFR Sec. 124.510(c) for examples of the application of this rule. Reports are due 30 days after the end of each semi-annual reporting period.

(End of clause)

H.4. GS1310 ORGANIZATIONAL CONFLICTS OF INTEREST—GENERAL (JULY 2001)

(a) The term "organizational conflict of interest" means a situation where a contractor has interests, either due to its other activities or its relationships with other organizations, which place it in a position that may be unsatisfactory or unfavorable (i) from the Government's standpoint in being able to secure impartial, technically sound, objective assistance and advice from the contractor, or in securing the advantages of adequate competition in its procurement; or (ii) from industry's standpoint in that unfair competitive advantages may accrue to the contractor in question.

(b) The contractor agrees that, if after award he discovers an organizational conflict of interest with respect to this contract, he shall make an immediate and full disclosure in writing to the Contracting Officer, which shall include a description of the action which the contractor has taken or proposes to take to avoid, eliminate, or neutralize the conflict. The Government may, however, terminate the contract for the convenience of the Government if it would be in the best interests of the Government.

(c) In the event that the contractor was aware of organizational conflict of interest prior to the award of thiscontract and failed to disclose the conflict to the Contracting Officer, the Government may terminate the contract at no cost to the Government.

(End of clause)

H.5. GS1311 RESTRICTION ON FUTURE CONTRACTING WITH USGS (JULY 2001)

(a) It is agreed by the parties to this contract that the contractor will be restricted in its future contracting with USGS in the manner described below. Except as specifically provided in this clause, the contractor shall be free to compete for USGS business on an equal basis with other companies.

(b) If the contractor, under the terms of this contract, or through the performance of tasks pursuant to this contract, is required to develop specifications or statements of work and such specifications or statements of work are to be incorporated into a solicitation, the contractor shall be ineligible to perform the work described within that solicitation as a prime or first- tier subcontractor under an ensuing USGS contract. Such restrictions shall remain in effect for 3 years following completion of work under this contract. It is further agreed that USGS will not unilaterally require the contractor to prepare such specifications or statements of work under this contract.

(c) The restrictions of paragraph (b), above, may be waived by the Contracting Officer if it is determined that such restrictions would be detrimental to the USGS program.

(End of clause)

H.6. GS1326 INDEMNITY JULY 2001

The contractor herein is "an independent contractor" and shall obtain all necessary insurance to protect himself from liability arising out of this contract.

The contractor hereby agrees to indemnify and hold the Government harmless in connection with, any loss or liability from damage to or destruction of property or from injuries to or death of persons (including the agents and employees of both parties) if such damage, destruction, injury or death arises out of, or is caused by performance of work under this contract, unless such damage, destruction, injury or death is caused solely by the active negligence of the Government, its agents or employees. The contractor agrees to include this clause, appropriately modified, in all subcontracts to be performed under this contract.

(End of clause)

H.7. GS1330 KEY PERSONNEL (JULY 2001)

(a) The Contractor shall assign to this contract the following key personnel to the identified positions/functions:

Position/Function	Name
Program Management	Name(s) to be determined

(Offeror must provide/enter the names of proposed key personnel, as presented in the technical proposal.)

(b) During the first 90 days of performance, the Contractor shall make no substitutions of key personnel unless the substitution is necessitated by illness, death, or termination of employment. The Contractor shall notify the Contracting Officer within 15 calendar days after the occurrence of any of these events and provide the information required by paragraph below. After the initial 90-day period, the Contractor shall submit the information required by paragraph (c) to the Contracting Officer at least 15 days prior to making any permanent substitutions.

(c) The Contractor shall provide a detailed explanation of the circumstances necessitating the proposed substitutions, complete resumes for the proposed substitutes, and any additional information requested by the Contracting Officer. Proposed substitutes must possess qualifications comparable to the original key person, as well as satisfying any minimum standards set forth elsewhere in the solicitation/contract. The Contracting Officer will notify the Contractor

within 15 calendar days after receipt of all required information of the decision on substitutions. This clause will be modified to reflect any approved changes of key personnel.

(End of clause)

H.8. GS1332 CONTRACTOR'S REPRESENTATIVE (JULY 2001)

(a) Upon contract award, the contractor shall furnish to the contracting officer the name of the person he has designated and assigned exclusively to this contract as his agent or representative. The contractor's representative shall exercise overall management responsibility for the contract effort, receive technical direction, and handle problems arising under the contract, such as dismissals, disciplinary matters, etc. The contractor's representative is further responsible for coordinating matters of mutual concern with the Government representatives. In the event questions of responsibility arise, they shall be resolved by the contracting officer or his authorized representative.

(b) The contractor's representative may not be diverted to other projects for 14 consecutive days or more without giving prior written notification to the contracting officer or his representative. Such notification shall include a justification for the diversion, together with information on the proposed substitute in sufficient detail to permit analysis of any potential negative effects on contract performance. No substitution shall be made without the written consent of the contracting officer; provided, however, that the contracting officer may grant such consent retroactively. Any such substitution of a permanent nature will be made a part of this contract through the issuance of a modification.

(c) When the Contractor's Representative is temporarily unavailable to manage the contract effort for a period longer than 72 hours, including absences due to vacation or illness, the contractor will provide to the COR a written designation of an alternate representative, itemizing any limitations in the alternate's authority. The procedures of paragraph (b) above do not apply to such temporary designations unless they are expected to exceed the time period indicated in that paragraph.

(End of clause)

H.9. GS1338 NOTICE TO THE GOVERNMENT OF DELAYS

In the event the contractor encounters difficulty in meeting performance requirements, or when it anticipates difficulty in complying with the contract delivery schedule or date, or whenever the contractor has knowledge that any actual or potential situation is delaying or threatens to delay the timely performance of this contract, the contractor shall immediately notify the contracting officer and the COR (if one has been designated), in writing, giving pertinent details. This data shall be informational only in character. Notice under this provision shall not be construed as a waiver by the Government of any delivery schedule or date or of any rights or remedies provided by law or under this contract.

H.10. GS1346 COMPLIANCE WITH OCCUPATIONAL SAFETY AND HEALTH ACT— GOVERNMENT OWNED FACILITIES/EQUIPMENT (APRIL 2003)

Performance of work hereunder shall comply with the provisions of the Occupational Health and Safety Act of 1970, as amended (OSHA). If, at any time during the performance of this contract, the Government-furnished facilities and/or equipment do not conform to OSHA standards, the contractor must so notify the Contracting Officer, in writing, including a recommendation of the corrective action needed.

(End of clause)

H.11. NOT-TO-EXCEED (NTE) INSTRUCTIONS

(a) For all Labor Hours task orders:

The contractor shall maintain a continuing record of charges against this labor hours task orders. When 85% of the total "not-to-exceed" amount of any labor hours task orders has been reached, the contractor shall notify the Contracting Officer and the Contracting Officer Technical Representative (COTR, COR) before proceeding further. This notification is required to ensure that the total labor, materials and travel do not exceed the amount obligated on ask orders. Charges in excess of the total ""not-to-exceed"" amount of this order will not be paid unless approved in writing by the Contracting Officer.

(b) For this IDIQ contract NTE Ceiling:

The contractor shall maintain a continuing record of charges against this IDIQ contract. When 80% of the total "not-to-exceed" ceiling amount of this contract has been reached, the contractor shall notify the Contracting Officer and the Contracting Officer

Technical Representative (COTR, COR) before accepting additional task orders. This notification is required to ensure that the total ceiling on this contract is not breached. Charges in excess of the total ""not-to-exceed"" amount of this order will not be available for task ordering unless approved in writing by the Contracting Officer.

(End of Clause)

H.12. GS1348 ACCIDENT REPORTING (APR 2003)

If an accident occurs on Government-controlled facilities, a report must be provided to the Contracting Officer's Representative and the Contracting Officer within 48 hours. An accident is defined as an event which causes injury, illness, or loss or damage to Government-owned or private property. The contractor will cooperate with any ensuing Government accident investigation.

(End of clause)

H.13. TRAVEL AND TRANSPORTATION (JULY 2001)

(a) The contractor shall be reimbursed for actual transportation costs and travel allowances of contractor employees in accordance with the travel cost principle in FAR 31.205, and Government Travel Regulations. Charges exceeding the amounts established in the Government Travel Regulations for individuals engaged in comparable functions may be disallowed as unreasonable unless approved in advance by the Contracting Officer.

(b) Costs for air transportation will not be reimbursed in an amount greater than the cost of commercially scheduled economy class (tourist) air travel by the most expeditious route, except as provided in the applicable cost principles cited in paragraph (a) above.

(End of clause)

H.14. G1364 NONPERSONAL SERVICES AND SUPERVISION OF CONTRACTOR'S EMPLOYEES (SEP 2017)

a. This contract is a "nonpersonal services contract" as defined in FAR 37.101. It is therefore, understood and agreed that the contractor and/or the contractor's employees:

(1) shall perform the services specified herein as independent contractors, not as employees of the government;

(2) shall request clarification in writing from the Contracting Officer if the Contractor finds it necessary with respect to the scope of services to be performed or the manner in which the services are to be performed hereunder;

(3) shall be responsible for their own management and administration of the work required and bear sole responsibility for complying with any and all technical, schedule, or financial requirements or constraints attendant to the performance of this contract;

(4) shall be free from supervision, direction or control by any government employee with respect to the manner or method of performance of the services specified; but

(5) shall comply with such general direction of the Contracting Officer (or the duly authorized representative) pursuant to the government's right and obligation to inspect, accept or reject the work as is necessary to ensure accomplishment of the contract objectives.

(6) shall not be at any time during the contract period employees of the U.S. Government.

b. The contractor's employees and subcontractors must make clear, in dealings with the public, federal employees, or other contractors that they are not federal employees. To minimize possible confusion, contractors and subcontractors are not permitted to wear clothing or other items (apart from official identity credential) bearing the name, logo, or seal of the U.S. Geological Survey while performing work under this contract.

c. (paragraph c. is applicable to contracts with individuals) The Government and the Contractor recognize and agree that no employer-employee relationship exists or will exist under the contract between the Government and the Contractor's personnel. Both parties agree to each of the following:

(1) Entitlement and benefits, including worker's compensation, applicable to an employer-employee relationship do not apply;

(2) Payments by the Government under this contract will be reported to the IRS as payments to an independent contractor. The contractor is responsible for making payments of estimated taxes, Federal Insurance Contributions Act (FICA) and Medicare contributions, and other applicable federal, state and local taxes applicable to this income, directly to the relevant taxing authority.

H.15. GS1366 NONDISCRIMINATION NOTICE TO U.S. DEPARTMENT OF THE INTERIOR CONTRACTORS, SUBCONTRACTORS, AND LESSORS (JAN 2000)

Based upon law, Executive Order, or internal policy, the Department of the Interior prohibits discrimination in the workplace, including sexual harassment, based on race, color, national origin, sex, religion, disability, age, or sexual orientation. The Department urges its contractors, subcontractors, and lessors to develop and enforce comprehensive anti-discrimination policies for their places of work.

(End of clause)

H.16. GS1371 AVAILABILITY OF IT SECURITY STANDARDS, GUIDES ANDOTHER PUBLICATIONS (MAY 2018)

One or more of the following documents relating to Information Technology (IT) security has been incorporated by reference into the solicitation/contract work statement. Copies of documents cited herein can be obtained as described below.

The following documents may be accessed electronically at these addresses:

- NIST Special Publications: http://csrc.nist.gov/publications/nistpubs/
- Federal Information Processing Standards: http://csrc.nist.gov/publications/fips/
- DOI Privacy Impact Assessment: http://www.doi.gov/ocio/privacy/DOI%20PIA_03.01.04.doc
- Secretarial Order 3255, Delegation of Authority for Certification and Accreditation of Information Technology Systems: http://elips.doi.gov/app_so/index.cfm?fuseaction=home

The following Department of the Interior documents are not publicly available. If one of these documents has been referenced elsewhere in this solicitation, it will be provided to interested offerors upon receipt by the Contracting Officer of a written request signed by a responsible official of that organization.

- DOI SDLC Security Integration Guide
- DOI Enterprise Computer Incident Response Plan
- DOI Contingency Plan Guide

(End of clause)

H.17. GS1396 RELEASES OF INFORMATION (JULY 2001)

(a) Disclosure of information gained as a result of work performed under this contract shall be accomplished according to U.S. Geological Survey procedures or through USGS channels. As used in this clause, the term "information" includes raw data, data derivative there from, and analysis or interpretations thereof, regardless of form. The term includes data developed or acquired by the contractor during performance of this contract, including analysis of samples provided by the Government and samples or recordings made by the contractor during contract performance.

(b) The contractor herebyagrees not to disclose such information to the public or to unauthorized parties without the prior written approval of the Contracting Officer. This restriction does not apply to releases of information to subcontractors (including consultants) as necessary for successful performance of the contract, provided (1) such information is of no commercial value to the subcontractor, and (2) the subcontractor agrees to be bound by the restrictions in this clause.

(c) After the contents of the contractor's final report have been made public by the Government, further releases of information may be made by the contractor, except for information subject to restrictions imposed elsewhere in this contract, if any. All releases must also comply with any additional restrictions which have been determined necessary by the Contracting Officer and provided to the contractor in writing.

(d) News releases pertaining to work under this contract shall not be made at any time without the approval and involvement of the cognizant Government Public Information Office.

(End of clause)

H.18. GS1406 CONFIDENTIALITY OF DATA (OCTOBER 2005)

(a) The work under this contract requires access to proprietary, business confidential, or financial data of other companies and/or USGS internal scientific, planning or procurement sensitive/source selection data, which, if released to third parties may give unfair business, technical, or competitive advantages. As long as such data remains proprietary or confidential, the contractor shall protect such data from unauthorized use and disclosure and agrees not to use it to compete with such companies or for any purpose other than performance of this contract.

(b) This data may be in various forms, such as documents, raw photographic films, magnetic or digital media, photographic prints, computer system data, or it may be interpretative results derived from analysis, investigative, or study effort. Regardless of the form of this data, the contractor agrees that neither it nor any of its employees will disclose to third parties any such data, or derivatives thereof, except as may be required in the performance of this contract. Further, the contractor will not copy any of this data, or derivatives thereof, other than as necessary for the performance of this contract.

(c) The contractor will establish policies and procedures to implement the substance of this clause at the individual employee level which will assure that affected employees are made aware of the contract provision and the contractor's implementing policies and procedures. Particular attention will be given to keeping employees advised of statutes and regulations applicable to the handling of third party confidential or financial data.

(d) This clause does not preclude the contractor and/or its employees from independently acquiring and using data from legitimate sources outside of this contract, or from performing and using independent analysis of data so acquired, provided that the contractor and/or its employees fully document the source of such data, and the independence of any such analysis.

(e) The Contractor shall immediately notify, in writing, the Contracting Officer in the event that the Contractor determines or has reason to suspect a breach of this requirement.

(f) The contractor will insert the substance of this clause in each subcontract hereunder (other than for purchase of supplies or equipment) unless the Contracting Officer has waived this requirement, in writing, as to particular subcontracts or classes of subcontracts.

(g) Any unauthorized disclosure of information may result in termination of this contract for cause.

(End of clause)

H.19. OWNERSHIP OF DATA AND PHOTOGRAPHIC MATERIALS

The government shall receive copyright and ownership to all data and photographic materials delivered under this contract upon formal acceptance. No distribution of the original or derived works shall be made prior to acceptance by the government unless specified in the task order or authorized by the Contracting Officer.

The government shall receive the rights to derive additional products from the data and photographic materials delivered under this contract.

The government shall receive unlimited data rights to all data captured during the performance of this contract and may order products from the captured data using the contractor’s established rates minus any charge for data capture. The contractor may maintain copyright and ownership of all original or derived works which are not required submittals under this contract.

If specified in a Task Order, all data captured must be retained in accordance with 52.215-2 Audit and Records - Negotiation. The contractor shall contact the COR and Task Order Manger before destroying any data captured under such a task order.

(End of clause)

H.20. GS1413 GOVERNMENT PROPERTY – USE AT GOVERNMENT FACILITY. (JUL 2001)

In the performance of work under this contract, the Government will make available to the contractor, on a no-charge-for-use basis, certain Government property. Such property shall be utilized in the performance of this contract at the Government installations administering this contract. Under this clause, the Government retains accountability as well as title to the property. The Government will provide the workspace, office furniture, computer resources, local workstation software, telephone service (for business purposes only), office supplies, and other equipment necessary to perform the duties specified in this Performance Work Statement. Contractor is not authorized to purchase office supplies and/or seek payment for the purchase of office supplies. Government furnished items shall not be used for any project other than in the support of this Performance Work Statement (PWS). All Government furnished items shall remain property of the Government.

Contractor personnel shall assume responsibility for all Government issued equipment and shall prudently maintain and guard equipment in accordance with applicable procedures. Equipment shall not leave the building/premises without prior approval of the COR and issuance of a property receipt. Contractor shall not modify or load software to computer equipment without prior approval by the COR. Contractor will not perform repairs or maintenance on any non-government furnished equipment utilizing Government workspace or equipment. Contractors shall annually reconcile their property records with the Task Order.

The official accountable record-keeping for property receipted items shall be retained by the Contractor. The contractor shall maintain this record and transaction documentation in such a condition that at any stage of completion of work under this contract, the status of the property and identification may be readily ascertained. The contractor shall also adhere to all other procedures (and sanctions related thereto) prescribed by the Government installation administering this contract. The records and documentation shall be made available, upon request, to the Contracting Officer and to other formally designated representative(s) of the Contracting Officer.

The Government is not responsible, in any way, for damage to Contractor's supplies, materials, or equipment, or to Contractor's employees' personal belongings due to fire, theft, accident or other disaster, except pursuant to the Federal Tort Claims Act.

The contractor shall be responsible for accounting for, issuing, and inventorying all property assigned to contractor personnel.

When a Contractor employee resigns or is dismissed, they will turn in all issued property before their last day of work, this includes any outstanding property issued via property receipt. This includes all peripheral items in support of a primary piece of equipment such as cell phone chargers and cases, computer mice and keyboard in support of a computer, power plus in support of GOS and digital cameras, etc. Under no circumstances will property be transferred to another employee, even if it is a replacement employee for the same position, unless documented by the COR. The contractor shall ensure that:

1. Cell phones, blackberries, and computers are sanitized of all personal information.

2. All Computers will first be checked by IT personnel prior to being reissued.
3. Equipment is properly issued to the next person to receive this equipment. All equipment will be first turned in to the Task Order Manager and returned to the "pool" of equipment. Equipment will then be checked out to the replacement employee from "pool" equipment.

4. Equipment will be completely checked to be sure it is in a serviceable status and that any updates or repairs are made before it is re-issued.

5. That the person turning the equipment in, has their record updated to reflect that the property has been received.

The contractor will issue all property. A property receipt form will be used to record the issuance of all equipment.

1. Blackberries, cell phones and digital cameras issues require the approval of the COR in writing. The TOM will send an e- mail request to the COR. If the person that left this position was authorized these items does not mean that the next person coming will be authorized one. The COR will make the approve decision. At the end of the individual employment, these items will need to be returned to the TOM.

2. Computers: All computer purchases require the approval of the COR and are ordered and paid for out of the requesting TOM's budget. All specifications for computers are developed by USGS ONLY. Once received the computer will go through USGS for configuration and software installation and will then give it to the contractor with an attached identification decal and to properly issue to an individual.

3. GPS devices: Temporary assignments: The contractor may issue a GPS device to personnel who present an approved Request for Travel Authorization. The device will be issued using the equipment issue form; the form will be placed in a suspense file until it is returned upon completion of travel. Once returned the property form will be marked with the date and time the unit was returned.

4. All other equipment: This equipment will be issued on an as needed basis; all issues will be accomplished using the equipment issue form

Permanent assignments of GPS units require the approval of the COR in writing. The TOM will send an e-mail to theCOR for approval. If the person that left the position was authorized a GPS does not mean that the new person coming in will be authorized one as well.

The contractor will conduct a 100% inventory on only that property assigned to him. The inventory will verify serial numbers, property numbers, and location of property. This inventory will be conducted on an annual basis and available for review by the TOM and/or COR. The contractor will work with the TOM and COR to determine the date and time of the inventory. The TOM and COR will also conduct spot checks to ensure that the property is located where it is supposed to be. The property manager will maintain a folder for each employee, with a record of all property that has been issued to them.

All lost or damaged property must be fully documented. Persons issued equipment, will immediately report any property that has been lost, stolen or damaged, accompanied by a full report as to the circumstances. Note: The replacement of lost, stolen or damaged equipment may not be possible based on the availability of funds.

Lost and stolen property will be reported to the Police. Every attempt will be made to recover the property if possible. A contractor insurance claim may also be required.

Equipment that has been damaged will be photographed and attached to the report by the employee. Damaged equipment may either be repaired or replaced.

(End of clause)

H.21. SECURITY REQUIREMENTS: FACILITY ACCESS AND INFORMATION TECHNOLOGY (AUG 2016)

Contractor Personnel Clearance and Identity Credentials

(a) During all operations on Government premises, contractor personnel shall comply with the rules and regulations governing the conduct of personnel and the operation of the facility.

(b) USGS rules regarding physical security and personnel security apply to all personnel in USGS facilities. The rules are contained in the following directives, available at http://www.usgs.gov/usgs-manual/handbook/index.html:
Physical Security Handbook 440-2-H
National Security Position Handbook (440-7-H)

(c) Each contractor (or subcontractor) employee requiring recurring access to USGS facilities will be required to obtain a USGS-issued identification badge. Government-issued identity credentials must be worn upon entry and displayed at all times while on federally controlled property, unless otherwise instructed by the COR. Prior to obtaining the badge, the contractor is required to initiate a background suitability check on each such employee in accordance with USGS National Security Position Handbook. The type of background investigation required is based on the risk/sensitivity level designation, as described in the Statement of Work. This clearance/credential requirement does not apply if the contractor does not have any unsupervised IT system access and will only need building access for less than 6 months or only occasional building access (such as for periodic equipment maintenance). In those cases, building procedures for visitors will be applied.

(d) At least 2 weeks before starting work, the contractor will provide a listing to the COR/technical liaison identifying contractor and subcontractor employees requiring access to USGS facilities or systems for performance of work hereunder.

(e) The contractor employees are required to complete the applicable clearance request forms provided by the COR. The following forms, or their equivalent may be used to initiate the credentialing process: SF 85 or SF 85-P (which includes authorization for credit check), SF 86, OF-306, and/or other forms designated for this purpose by the Office of Personnel

Management (OPM), Federal Protective Service, or other federal agency in whose space work will be performed under this contract. The SF 86 must be completed on-line at http://www.opm.gov/e-qip/ and printed out by the employee. Contractor employees must present themselves for fingerprinting, together with the printed SF 86, other completed forms, at least 14 calendar days before starting work under this contract. If fewer than 14 days remain before the scheduled start of contract performance, the contractor employee may be allowed temporary, supervised access but must complete this application process as soon as practicable, normally within a day of his or her first arrival at the facility. An employee's refusal to provide or authorize provision of information may constitute grounds for denial or revocation of credentials. Government personnel may contact the contractor/subcontractor employee being screened or investigated in person, by telephone or in writing, and the contractor agrees to make them available for such contact. If a contractor an employee already holds a credential issued by a federal agency after clearance through OPM, provide documentation supporting this status to the COR. USGS security officials will determine if the existing clearance can be accepted without further investigation.

(f) Badges/credentials issued upon satisfactory completion of a preliminary National Agency Check (NAC) may be revoked if the subsequent NAC with Inquiries (NACI) investigation produces an unfavorable determination. Individuals who do not pass the background investigation cannot be permitted to hold a building pass, allowed entry into the building for contract work, or permitted access to USGS systems (whether remote or on-site). In such cases, the Contractor will be required to sign (or have their subcontractor sign) a notification form indicating that their employee has been informed of the results of the background check. The Government will be the final authority in determining access privileges. The Government's exercise of its right to grant and revoke the access of particular individual(s) to its facilities, systems, or parts thereof shall not constitute a breach or change to the Contract, regardless of it impact on any individual's ability to perform work under the Contract.

(g) The Government reserves the right to require a re-submission of clearance forms and a new background investigation at any time. Failure to provide the documents within the specified time period will result in removal of the employee until such time that the documents are submitted, and clearance granted. Should removal be necessary, salary/wages and other costs associated with the removed employee are not allowable or allocable under this contract. If removal would result in understaffing or non-performance of contract requirements, the Contractor shall provide a qualified and cleared replacement. Failure to do so will entitle to Government to a downward adjustment in price reflecting the reduced level of performance.

(h) When any of their personnel leaves the company's employ, is reassigned to other work, or otherwise no longer requires access to USGS facilities or USGS computer systems, the contractor shall immediately advise the USGS COR so that those user accounts and credentials can be cancelled. The contractor will ensure that the ID badge and keys (if any) are retrieved and promptly returned to the COR, who will forward them to the issuing USGS security official. The COR must be notified in advance of any potentially unfriendly termination of an employee or subcontractor.

(i) The contractor will report any lost keys or badges to the COR within 24 hours. The COR will relay the information to the responsible building security officials. All badges and keys shall be returned to the COR at the completion of this contract.
(j) The requirements of this clause must be included in any subcontracts in which subcontract workers will need building or unsupervised system access as described in paragraph (b).
(k) For awards with no designated COR, that function will be performed by the employee designated as "Technical Liaison" (if any), or by the employee named as the "ship to" addressee.

(End of clause)

H.22. GS1420 USE OF GOVERNMENT COMPUTERS (SEP 2018)

(a) USGS rules regarding security of information technology systems apply to all personnel with access to Government IT equipment or data or to non-Government computer equipment (e.g. company or personal laptops) connected to USGS systems, networks or internet services. The rules are contained in the following directives:

(1) Survey Manual 600.5, Information Technology Systems Security – General Requirements
(2) USGS Computer And Network Security Handbook (available internally only)

(b) In performance of the contract, it is the responsibility of the contractor to ensure that all of their personnel with USGS computer system access follow and adhere to the USGS computer and information systems security policies, standard, and procedures and abide by the USGS Rules of Behavior, as described in the USGS Computer And Network Security Handbook.

(c) The contractor and its employees and subcontractors shall not install any personal or company-owned software or applications on Government-owned equipment without the express permission of the COR. Use of unnecessary user

applications (e.g., personal use of external instant messaging, desktop search engine, peer-to-peer file sharing services), and services that are not needed or duplicate the Government-provided equivalents (e.g., alternate e-mail services) is prohibited. Contractors will cooperate in any software management assessments and software user surveys.

(d) If employees of the contractor or any of its subcontractors are given user accounts in USGS email systems, the Contractor will ensure that they have correctly identified themselves in the email system as contractors and have included the name of their company in the directory and in an automatic signature line, so that any email correspondence is readily recognized as coming from a contractor rather than a USGS employee.

(End of clause)

H.23. GS1430 ORDERING AUTHORITY AND FORMAT (JULY 2001)

(a) Orders under this contract may be issued by warranted contracting officers of the following activity:

U.S. Geological Survey

(b) All orders will be placed in writing using USGS Optional Form 347 or an electronic equivalent if issued through an electronic commerce system. As a minimum, each order will contain the following information: 1) contract and order numbers, 2) date of order, 3) contract line item numbers, descriptions, contract unit prices and amounts (or estimated cost and fee, as applicable), 4) delivery or performance date, 5) place of delivery or performance, 6) accounting and appropriation data, and 7) signature of an authorized ordering official.

(End of clause)

H.24. GS1431 CONTRACT MAXIMUM (JULY 2001)

The total amount of all orders placed under each contract shall not exceed:

$47,000,000.00 for the life of the contract

(End of clause)

H.25. GS1432 CONTRACT GUARANTEED MINIMUM (JULY 2001)

(a) During the effective contract period, the Government shall order at least the stated minimum quantity for each individual line item in Section B. If no minimum quantities are stated, the Government shall order quantities totaling a minimum of

$50,000.00 for the awarded overall IDIQ contract.

(b) Unless specifically identified in Section B as minimums, the quantities shown are estimates only, and are not purchased hereby. In the event the Government's needs for items under this contract do not result in orders in the amounts or quantities described as "estimated" in Section B, such event shall not constitute the basis for an equitable price adjustment under this contract.

(c) If the Government fails to place orders for the minimums computed under paragraph (a), above, the contractor will not be entitled to payment of the contract price for the unordered quantities, but will be entitled to damages suffered as a result of the Government's failure to order the minimum quantity. If the Government notifies the contractor, prior to expiration of the contract ordering period, that the contract minimum will not be required, such action will constitute a Termination for Convenience of the Government, and the Contractor will be entitled to recover under the Termination for Convenience clause of the contract.

(d) If the Government fails to order the contract minimum during the stated contract period, any options to extend the contract for additional periods are rendered void.

(End of clause)

H.26. TASK REQUEST, ORDERING, ACCEPTANCE

Labor Hour Task Order (LHTO): In the event this type of task order is required due to special circumstances, the Government shall reimburse the contractor for the level of effort (labor category and number of hours) expended to successfully accomplish the task(s) described in the task order performance work statement. The labor categories and rates set forth in the contract shall be used to establish the total task order amount. Both the Government and the contractor shall agree to the labor category to be used and the number of hours required to accomplish the task objectives within the established time frame.

Firm Fixed Price Task Order (FFPTO): This type of task order shall reimburse the contractor for the firm fixed price of the task(s) performed in accordance with the task order performance work statement. The labor categories and rates set forth in the contract shall be used to establish a reasonable firm fixed price of the task order. However, payment is based on successful completion of the task(s). Payment is not based on the level of effort expended to complete the task.

This contract is a "nonpersonal services contract" as defined in FAR 37.101. It is, therefore understood and agreed that the contractor and/or the contractor's employees:

(1) shall perform the services specified herein as independent contractors, not as employees of the government;
(2) shall be responsible for their own management and administration of the work required; and
(3) shall be free from supervision or control by any government employee with respect to the manner or method of performance of the services specified.

The procedures outlined below shall govern how support services are requested, received, reviewed, and accepted/rejected by the Government:

A. All task orders or change to a task order will specify and authorize the work to be accomplished by the contractor. For each task order, the CO will request a price proposal for the required effort. Each task order request for proposal will include a performance work statement which generally provides the following: background information on the project or research study for which the work/additional hours are being performed, a detailed description of the work tasks to be accomplished, schedule of performance, end product deliverables, satisfactory performance criteria, authorized travel, if applicable, and any additional information or data relevant to the assigned work. Government request for price proposals will not obligate the Government to award a task order.

B. In response to the task order request for proposal, the contractor shall prepare and submit a price proposal to the CO within five (5) workdays. For a LHTO, the price proposal shall utilize the labor categories and fixed rates specified in the contract, for that period; the information provided shall identify the labor categories, proposed number of labor hours, negotiated fixed hourly rate, estimated cost for travel, if applicable, and total proposed price. For a FFPTO, the price proposal shall provide the firm fixed price to successfully accomplish the task(s); information shall be provided to identify the labor mix intended to accomplish the task. For both LHTO and FFPTO, the contractor shall also provide any additional data (e.g, revisions to the Government's statement of work, supporting schedules, subcontracted items and justifications) to the CO.

C. The Government will make attempts to award task orders at least twenty-one (21) workdays prior to the required start date. Award of task orders will be in writing. However, it is within the CO's discretion to verbally notify the contractor of an award with written confirmation to be issued within five (5) workdays. No work may be initiated on any task order, or expenditures charged to the Government, prior to either written issuance of the task order or verbal notification by the CO.

D. Changes to task order content, analysis approach, level of effort, schedules, cost, and deliverables shall be made solely by the Contracting Officer. The contractor is authorized to manage the allocation of hours between designated labor categories to achieve the most efficient utilization of personnel and accomplishment of task order requirements. The COR and Task Order Manager(s) may provide written authorization for travel changes provided authorized costs remain unchanged**.** The contractor shall not exceed authorized funds and/or hours designated in the task order without written authorization of the Contracting Officer.

E. If a ceiling price has been provided for a specific task order, the contractor may not exceed the ceiling price. When the contractor has reason to believe that the charges for labor hours and travel costs (if applicable) for the order will, within the next 30 days bring the total cost to over 85% of the ceiling specified in the order, the contractor shall notify the Contracting Officer. Such notification shall include an estimate of the additional amount and, if necessary, additional time required for completion of the ordered work.

F. Orders may be placed during the effective period of the contract, as identified in the clause at F.2 Term of the Contract. For a LHTO, labor rate(s)/price(s) applicable to hours expended in performance of an order will be the contract rate(s) that are in effect at the time the work is actually performed. For a FFPTO, the firm fixed price set forth in the task order for the

effective period of the work will be the basis for payment of work performed in that period. Any order issued during the effective period of this contract and not completed within that time shall be governed by the contract terms to the same extent as if the order were completed during the contract's effective period, including the contract and individual order ceiling prices. Work performed on such orders after the end of the contract's effective period will continue to be charged at the last effective rate(s) or price(s).

G. The task order assignment will be completed when the required end products and/or satisfactory performance requirements are delivered by the contractor and accepted by the Government in accordance with the executed task order and any formal modifications thereto.

(End of provision)

H.27. GS1438 TASK AND DELIVERY ORDER OMBUDSMAN (JUL 2007)

Communications with the task and delivery order ombudsman for the Department of the Interior may be directed to:

Name: Tiffany Harvey
Chief of Acquisition Division
Office of Acquisition and Property Management
U.S. Department of the Interior
1849 C Street NW, Washington, DC 20240
(202) 513-7541
Tiffany_Harvey@ios.doi.gov

H.28. GS1440 WAGE DETERMINATION APPLICABLE (JULY 2001)

In the performance of this contract, the contractor shall comply with the requirements of the U.S. Department of Labor (DOL) Wage Determinations (WD) for the location where work is performed for the Government. The contractor is responsible to pay its employees in accordance with the prevailing wage rates for the city, county, state where the work is performed in accordance with the DOL WDs, which, at the time of this award, are found at the beta.SAM.gov site, https://beta.sam.gov/search?index=wd&keywords=&sort=-modifiedDate&wdType=sca&is_wd_even=false&is_standard=true&prevP=prevPerfNo&page=1
The wage determinations for Year One of this contract are incorporated into this contract as:

(1) Attachment 2a. For services performed in and around Reston VA, DOL WD 2015-4281, Revision 16, dated 04/23/2020;
(2) Attachment 2b. For services performed in and around Denver CO, DOL WD 2015-5419, Revision 14, dated 07/08/2020; and
(3) Attachment 2c. For services performed in and around Rolla MO, DOL WD 2015-5093, Revision 13, dated 05/18/2020.

Telecommuting. The Contractor shall pay their employees based prevailing WD for the location where the telecommuting work is performed in accordance with the Department of Labor's wage determination for the appropriate wage category and county/state as found at Beta.SAM.gov site; https://beta.sam.gov/search?index=wd&keywords=&sort=-modifiedDate&wdType=sca&is_wd_even=false&is_standard=true&prevP=prevPerfNo&page=1

(End of clause)

H.29. CONTRACTOR EMPLOYEES

Contractor personnel shall present a neat appearance and be easily recognized as contractor employees by wearing a Security Identification Badge at all times while on Government premises. When Contractor personnel attend meetings, answer phones, and work in other situations where their status is not obvious to third parties, they must identify themselves as such to avoid creating the impression that they are government employees.

Contractor employees shall comply with all applicable Federal Government and USGS internal regulations procedures during the performance period of this contract, which includes the prohibition of personal use of all government equipment by contractor employees.

Contractor employees shall conduct only such business as covered by this contract during periods paid for by the government. Business not directly related to this contract shall not be conducted on government premises. The contractor employees shall not be diverted to other company business while performing on this contract.

(End of clause)

SECTION I. CONTRACT CLAUSES

I.1. 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

The contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at the following addresses:

http://www.acquisition.gov/far

http://www.doi.gov/pam/aindex.html

52.202-1 DEFINITIONS (NOV 2013)

52.203-3 GRATUITIES (APR 1984)

52.203-17 CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS AND REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS (APR 2014)

52.204-4 Printed or Copied Double-Sided on Postconsumer Fiber Content Paper (May 2011)

52.204-9 PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL. (JAN 2011)

52.212-4 CONTRACT TERMS AND CONDITIONS - COMMERCIAL ITEMS. (OCT 2018)

52.212-4 CONTRACT TERMS AND CONDITIONS - COMMERCIAL ITEMS. Alt 1 (Jan 2017)

(for Labor Hours Task Orders)

52.215-2 AUDIT AND RECORDS-NEGOTIATION (OCT 2014)

52.223-2 AFFIRMATIVE PROCUREMENT OF BIOBASED PRODUCTS UNDER SERVICE AND CONSTRUCTION CONTRACTS. (SEP 2013)

52.223-5 POLLUTION PREVENTION AND RIGHT-TO-KNOW INFORMATION. (MAY 2011)

52.223-6 DRUG-FREE WORKPLACE (MAY 2001)

52.223-10 WASTE REDUCTION PROGRAM. (MAY 2011)

52.223-17 AFFIRMATIVE PROCUREMENT OF EPA-DESIGNATED ITEMS IN SERVICE AND CONSTRUCTION CONTRACTS (AUG 2018)

52.225-25 PROHIBITION ON CONTRACTING WITH ENTITIES ENGAGING IN CERTAIN ACTIVITIES OR TRANSACTIONS RELATIN TO IRAN-REPRESENTATION AND CERTIFICATIONS (AUG 2018)

52.227-1 AUTHORIZATION AND CONSENT. (DEC 2007)

52.227-2 NOTICE AND ASSISTANCE REGARDING PATENT AND COPYRIGHT INFRINGEMENT. (DEC 2007)

52.227-11 PATENT RIGHTS—OWNERSHIP BY THE CONTRACTOR. (MAY 2014)

52.227-14 RIGHTS IN DATA—GENERAL. (MAY 2014)

52.227-17 RIGHTS IN DATA—SPECIAL WORKS. (DEC 2007)

52.228-5 INSURANCE—WORK ON A GOVERNMENT INSTALLATION. (JAN 1997)

52.229-3 FEDERAL, STATE AND LOCAL TAXES (FEB 2013)

52.232-17 INTEREST (MAY 2014)

52.232-23 ASSIGNMENT OF CLAIMS (MAY 2014)

52.232-39 UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS (JUN 2013)

52.237-3 CONTINUITY OF SERVICES (JAN 1991)

52.242-13 BANKRUPTCY (JUL 1995)

52.245-1 GOVERNMENT PROPERTY (JAN 2017)

52.245-9 USE AND CHARGES (APR 2012)

(End of clause)

I.2. 52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS – COMMERCIAL ITEMS. (AUG 2020)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial items:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).
(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (JUL 2018) (Section 1634 of Pub. L. 115-91).
(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (AUG 2020) (Section 889(a)(1)(A) of Pub. L. 115-232).
(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).
(5) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).
(6) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial items:

_x_ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUNE 2020), with Alternate I (OCT 1995) (41 U.S.C. 4704 and 10 U.S.C. 2402).
_X_ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (JUN 2020) (41 U.S.C. 3509)).
__ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)
_X_ (4) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).
__ (5) [Reserved].
__ (6) 52.204-14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).
_x_ (7) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).
_X_ (8) 52.209-6, Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment. (JUN 2020) (31 U.S.C. 6101 note).
_x_ (9) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).
__ (10) [Reserved].
__ (11) (i) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (MAR 2020) (15 U.S.C. 657a).
__ (ii) Alternate I (MAR 2020) of 52.219-3.
__ (12) (i) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (MAR 2020) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).
__ (ii) Alternate I (MAR 2020) of 52.219-4.
__ (13) [Reserved]
_X_ (14) (i) 52.219-6, Notice of Total Small Business Set-Aside (MAR 2020) of 52.219-6 (15 U.S.C. 644).
__ (ii) Alternate I (MAR 2020) of 52.219-6.

__ (15) (i) 52.219-7, Notice of Partial Small Business Set-Aside (MAR 2020) (15 U.S.C. 644).

__ (ii) Alternate I (MAR 2020) of 52.219-7.
_x_ (16) 52.219-8, Utilization of Small Business Concerns (OCT 2018) (15 U.S.C. 637(d)(2) and (3)).
__ (17) (i) 52.219-9, Small Business Subcontracting Plan (JUN 2020) (15 U.S.C. 637(d)(4)).
__ (ii) Alternate I (NOV 2016) of 52.219-9.
__ (iii) Alternate II (NOV 2016) of 52.219-9.
__ (iv)Alternate III (JUN 2020) of 52.219-9.
__ (v)Alternate IV (JUN 2020) of 52.219-9
__ (18) (i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).
(ii) Alternate I (MAR 2020) of 52.219-13.
_x_ (19) 52.219-14, Limitations on Subcontracting (MAR 2020) (15 U.S.C. 637(a)(14)).
__ (20) 52.219-16, Liquidated Damages-Subcontracting Plan (JAN 1999) (15 U.S.C. 637(d)(4)(F)(i)).
__ (21) 52.219-27, Notice of Service-Disabled Veteran-Owned Small Business Set-Aside (MAR 2020) (15 U.S.C. 657f).
_x_ (22) (i) 52.219-28, Post Award Small Business Program Representation (MAY 2020) (15 U.S.C. 632(a)(2)).
(ii) Alternate I (MAR 2020) of 52.219-28.
__ (23) 52.219-29, Notice of Set-Aside for, or Sole Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (MAR 2020) (15 U.S.C. 637(m)).
__ (24) 52.219-30, Notice of Set-Aside for, or Sole Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Mar2020) (15 U.S.C. 637(m)).
__ (25) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).
__ (26) 52.219-33, Nonmanufacturer Rule (MAR 2020) (15U.S.C. 637(a)(17)).
_X_ (27) 52.222-3, Convict Labor (JUN 2003) (E.O.11755).
_X_ (28) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (JAN2020) (E.O.13126).
_X_ (29) 52.222-21, Prohibition of Segregated Facilities (APR 2015).
_X_ (30) (i) 52.222-26, Equal Opportunity (SEP 2016) (E.O.11246).
__ (ii) Alternate I (FEB 1999) of 52.222-26.
_X_ (31) (i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).
__ (ii) Alternate I (JUL 2014) of 52.222-35.
_X_ (32) (i) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).
__ (ii) Alternate I (JUL 2014) of 52.222-36.
_X_ (33) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).
_x_ (34) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).
_X_ (35) (i) 52.222-50, Combating Trafficking in Persons (JAN 2019) (22 U.S.C. chapter 78 and E.O. 13627).
__ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).
_x_ (36) 52.222-54, Employment Eligibility Verification (OCT 2015). (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial items as prescribed in 22.1803.)
__ (37) (i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA–Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
__ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
__ (38) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (Jun 2016) (E.O. 13693).
__ (39) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (JUN 2016) (E.O. 13693).
__ (40) (i) 52.223-13, Acquisition of EPEAT®-Registered Imaging Equipment (JUN 2014) (E.O.s 13423 and 13514).
__ (ii) Alternate I (OCT 2015) of 52.223-13.
__ (41) (i) 52.223-14, Acquisition of EPEAT®-Registered Televisions (JUN 2014) (E.O.s 13423 and 13514).
__ (ii) Alternate I (Jun2014) of 52.223-14.
_x_ (42) 52.223-15, Energy Efficiency in Energy-Consuming Products (MAY 2020) (42 U.S.C. 8259b).
__ (43) (i) 52.223-16, Acquisition of EPEAT®-Registered Personal Computer Products (OCT 2015) (E.O.s 13423 and 13514).
__ (ii) Alternate I (JUN 2014) of 52.223-16.
_X_ (44) 52.223-18, Encouraging Contractor Policies to Ban Text Messaging While Driving (JUN 2020) (E.O. 13513).
__ (45) 52.223-20, Aerosols (JUN 2016) (E.O. 13693).
__ (46) 52.223-21, Foams (Jun2016) (E.O. 13693).
__ (47) (i) 52.224-3 Privacy Training (JAN 2017) (5 U.S.C. 552 a).
__ (ii) Alternate I (JAN 2017) of 52.224-3.
_X_ (48) 52.225-1, Buy American-Supplies (May 2014) (41 U.S.C. chapter 83).
__ (49) (i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (MAY 2014) (41 U.S.C.chapter83, 19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, Pub. L. 103-182, 108-77, 108-

78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

__ (ii) Alternate I (MAY 2014) of 52.225-3.

__ (iii) Alternate II (MAY 2014) of 52.225-3.

__ (iv) Alternate III (MAY 2014) of 52.225-3.

__ (50) 52.225-5, Trade Agreements (OCT 2019) (19 U.S.C. 2501, et seq., 19 U.S.C. 3301 note).

_x_ (51) 52.225-13, Restrictions on Certain Foreign Purchases (JUN 2008) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

__ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. 2302Note).

__ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov2007) (42 U.S.C. 5150).

__ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov2007) (42 U.S.C. 5150).

__ (55) 52.229-12, Tax on Certain Foreign Procurements (JUN 2020).

__ (56) 52.232-29, Terms for Financing of Purchases of Commercial Items (FEB 2002) (41 U.S.C. 4505, 10 U.S.C. 2307(f)).

__ (57) 52.232-30, Installment Payments for Commercial Items (Jan2017) (41 U.S.C. 4505, 10 U.S.C. 2307(f)).

_X_ (58) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (OCT2018) (31 U.S.C. 3332).

__ (59) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).

__ (60) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).

_x_ (61) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).

_x_ (62) 52.242-5, Payments to Small Business Subcontractors (JAN 2017) (15 U.S.C. 637(d)(13)).

__ (63) (i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (FEB 2006) (46 U.S.C. Appx. 1241(b) and 10 U.S.C. 2631).

__ (ii) Alternate I (APR 2003) of 52.247-64.

__ (iii) Alternate II (FEB 2006) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial items:

_x_ (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter67).

_X_ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

_X_ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

_x_ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29U.S.C.206 and 41 U.S.C. chapter 67).

__ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

__ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).

_X_ (7) 52.222-55, Minimum Wages Under Executive Order 13658 (DEC 2015).

_X_ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2017) (E.O. 13706).

__ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) in a subcontract for commercial items. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (JUN 2020) (41 U.S.C. 3509).

(ii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iii) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (JUL 2018) (Section 1634 of Pub. L. 115-91).

(iv) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (AUG 2020) (Section 889(a)(1)(A) of Pub. L. 115-232).

(v) 52.219-8, Utilization of Small Business Concerns (OCT 2018) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(vi) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

(vii) 52.222-26, Equal Opportunity (SEP 2015) (E.O.11246).

(viii) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(ix) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(x) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xi) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xii) 52.222-41, Service Contract Labor Standards (Aug2018) (41 U.S.C. chapter 67).

(xiii) (A) 52.222-50, Combating Trafficking in Persons (JAN 2019) (22 U.S.C. chapter 78 and E.O 13627).

(B) Alternate I (Mar2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xiv) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May2014) (41 U.S.C. chapter 67).

(xv) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY2014) (41 U.S.C. chapter 67).

(xvi) 52.222-54, Employment Eligibility Verification (OCT 2015) (E.O. 12989).

(xvii) 52.222-55, Minimum Wages Under Executive Order 13658 (DEC 2015).

(xviii) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2017) (E.O. 13706).

(xix) (A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (JAN 2017) of 52.224-3.

(xx) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. 2302 Note).

(xxi) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (FEB 2006) (46 U.S.C. Appx. 1241(b) and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial items a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

I.3. 52.216-18 ORDERING. (OCT 1995)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from May 1, 2021 through April 30, 2026, (and, through October 31, 2026 if the entire optional up-to-six months extension is exercised).

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the IDIQ contract shall control.

(c) If mailed, a delivery order or task order is considered “issued” when the Government deposits the order in the mail. Orders may be issued orally, by facsimile, or by electronic commerce methods only if authorized in the Schedule.

(End of clause)

I.4. 52.216-19 ORDER LIMITATIONS. (OCT 1995)

(a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than $2,500.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) Maximum order. The Contractor is not obligated to honor -

(1) Any order for a single item in excess of $6,000,000.00;

(2) Any order for a combination of items in excess of $12,000,000.00; or

(3) A series of orders from the same ordering office within 10 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within five (5) days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

I.5. 52.216-22 INDEFINITE QUANTITY. (OCT 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after one year after expiration of the contract period.

(End of clause)

I.6. 52.217-8 OPTION TO EXTEND SERVICES. (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days before expiration of period of performance.

(End of clause)

I.7. 52.219-17 SECTION 8(A) AWARD. (OCT 2019)

(a) By execution of a contract, the Small Business Administration (SBA) agrees to the following:

(1)To furnish the supplies or services set forth in the contract according to the specifications and the terms and conditions by subcontracting with the Offeror who has been determined an eligible concern pursuant to the provisions of section8(a) of the Small Business Act, as amended (15 U.S.C.637(a)).

(2) Except for novation agreements, delegates to the Office of Acquisition and Grants, Denver Branch, the responsibility for administering the contract with complete authority to take any action on behalf of the Government under the terms and conditions of the contract; provided, however that the contracting agency shall give advance notice to the SBA before it issues a final notice terminating the right of the subcontractor to proceed with further performance, either in whole or in part, under the contract.

(3) That payments to be made under the contract will be made directly to the subcontractor by the contracting activity.

(4) To notify the Office of Acquisition and Grants, Denver Branch, Contracting Officer immediately upon notification by the subcontractor that the owner or owners upon whom 8(a) eligibility was based plan to relinquish ownership or control of the concern.

(5) That the subcontractor awarded a subcontract hereunder shall have the right of appeal from decisions of the cognizant Contracting Officer under the "Disputes" clause of the subcontract.

(b) The offeror/subcontractor agrees and acknowledges that it will, for and on behalf of the SBA, fulfill and perform all of the requirements of the contract.

(End of clause)

I.8. 52.219-18 NOTIFICATION OF COMPETITION LIMITED TO ELIGIBLE 8(A) CONCERNS. JAN 2017

(a) Offers are solicited only from small business concerns expressly certified by the Small Business Administration (SBA) for participation in the SBA's 8(a) Program and which meet the following criteria at the time of submission ofoffer—

(1) The Offeror is in conformance with the 8(a) support limitation set forth in its approved business plan; and

(2) The Offeror is in conformance with the Business Activity Targets set forthin its approved business plan or any remedial action directed by the SBA.

(b) By submission of its offer, the Offeror represents that it meets all of the criteria set forth in paragraph (a) of this clause.

(c) Any award resulting from this solicitation will be made to the Small Business Administration, which will subcontract performance to the successful 8(a) offeror selected through the evaluation criteria set forth in this solicitation.

(d)(1) *Agreement*. A small business concern submitting an offer in its own name shall furnish, in performing the contract, only end items manufactured or produced by small business concerns in the United States or its outlying areas. If this procurement is processed under simplified acquisition procedures and the total amount of this contract does not exceed $25,000, a small business concern may furnish the product of any domestic firm. This paragraph does not apply to construction or service contracts.

(2) The_____[*insert name of SBA's contractor*] will notify the U.S. Geological Survey Contracting Officer in writing immediately upon entering an agreement (either oral or written) to transfer all or part of its stock or other ownership interest to any other party.

(End of clause)

I.09. 1452.215-70 EXAMINATION OF RECORDS BY THE DEPARTMENT OF THE INTERIOR. (APR 1984)

For purposes of the Examination of Records by the Comptroller General clause of this contract (FAR 52.215-1), the Secretary of the Interior, the Inspector General, and their duly authorized representative(s) from the Department of the Interior shall have the same access and examination rights as the Comptroller General of the United States.

(End of clause)

I.10. 1452.215-71 USE AND DISCLOSURE OF PROPOSAL INFORMATION - DEPARTMENT OF THE INTERIOR. (APR 1984)

(a) Definitions. For the purposes of this provision and the Freedom of Information Act (5 U.S.C. 552), the following terms shall have the meaning set forth below:

> (1) Trade Secret means an unpatented, secret, commercially valuable plan, appliance, formula, or process, which is used for making, preparing, compounding, treating or processing articles or materials which are trade commodities.
>
> (2) Confidential commercial or financial information means any business information (other than trade secrets) which is exempt from the mandatory disclosure requirement of the Freedom of Information Act, 5 U.S.C. 552. Exemptions from mandatory disclosure which may be applicable to business information contained in proposals include exemption (4), which covers commercial and financial information obtained from a person and privileged or confidential, and exemption (9), which covers geological and geophysical information, including maps, concerning wells.

(b) If the offeror, or its subcontractor(s), believes that the proposal contains trade secrets or confidential commercial or financial information exempt from disclosure under the Freedom of Information Act, (5 U.S.C. 552), the cover page of each copy of the proposal shall be marked with the following legend:

> The information specifically identified on pages _____ of this proposal constitutes trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act. The offeror requests that this information not be disclosed to the public, except as may be required by law. The offeror also requests that this information not be used in whole or part by the government for any purpose other than to evaluate the proposal, except that if a contract is awarded to the offeror as a result of or in connection with the submission of the proposal, the Government shall have the right to use the information to the extent provided in the contract.

(c) The offeror shall also specifically identify trade secret information and confidential commercial and financial information on the pages of the proposal on which it appears and shall mark each such page with the following legend:

> This page contains trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act and which is subject to the legend contained on the cover page of this proposal.

(d) Information in a proposal identified by an offeror as trade secret information or confidential commercial and financial information shall be used by the Government only for the purpose of evaluating the proposal, except that (i) if a contract is awarded to the offeror as a result of or in connection with submission of the proposal, the Government shall have the right to use the information as provided in the contract, and (ii) if the same information is obtained from another source without restriction it may be used without restriction.

(e) If a request under the Freedom of Information Act seeks access to information in a proposal identified as trade secret information or confidential commercial and financial information, full consideration will be given to the offeror's view that the information constitutes trade secrets or confidential commercial or financial information. The offeror will also be promptly notified of the request and given an opportunity to provide additional evidence and argument in support of its position, unless administratively unfeasible to do so. If it is determined that information claimed by the offeror to be trade secret information or confidential commercial or financial information is not exempt from disclosure under the Freedom of Information Act, the offeror will be notified of this determination prior to disclosure of the information.

(f) The Government assumes no liability for the disclosure or use of information contained in a proposal if not marked in accordance with paragraphs (b) and (c) of this provision. If a request under the Freedom of Information Act is made for information in a proposal not marked in accordance with paragraphs (b) and (c) of this provision, the offeror concerned shall be promptly notified of the request and given an opportunity to provide its position to the Government. However, failure of an offeror to mark information contained in a proposal as trade secret information or confidential commercial or financial information will be treated by the Government as evidence that the information is not exempt from disclosure under the Freedom of Information Act, absent a showing that the failure to mark was due to unusual or extenuating circumstances, such as a showing that the offeror had intended to mark, but that markings were omitted from the offeror's proposal due to clerical error.

(End of provision)

I.11. 1452.228-70 LIABILITY INSURANCE—DEPARTMENT OF THE INTERIOR (MODIFIED) (JULY 1998)

With respect to Clauses 52.228-5, 52.228-7 and DIAR 1452.228-70, the contractor shall acquire and maintain the following amounts of insurance.

(a) The Contractor shall procure and maintain during the term of this contract and any extension thereof liability insurance in form satisfactory to the Contracting Officer by an insurance company which is acceptable to the Contracting Officer. The named insured parties under the policy shall be the Contractor and the United States of America. The amounts of the insurance shall be not less than as follows:

$100,000.00 each person
$500,000.00 each occurrence
$100,000.00 property damage

(b) Each policy shall have a certificate evidencing the insurance coverage. The insurance company shall provide an endorsement to notify the Contracting Officer 30 days prior to the effective date of cancellation or termination of the policy or certificate; or modification of the policy or certificate which may adversely affect the interest of the Government in such insurance. The certificate shall identify the contract number, the name and address of the Contracting Officer, as well as the insured, the policy number and a brief description of contract services to be performed. The contractor shall furnish the Contracting Officer with a copy of an acceptable insurance certificate prior to beginning the work.

(c) Automobile liability with minimum limits of $200,000 per person and $500,000 per accident or occurrence forbodily injury and $20,000 per accident or occurrence of property damage.

(End of clause)

I.12. 52.900S-1006 PREVENTION OF MALICIOUS CODE (MAR 2005)

(a) Definitions
Malicious code is a computer code developed for the purpose of causing some form of intentional damage to computer systems or networks. Malicious code may be a complete program or code imbedded in software programs that appear to provide useful functions. The term includes computer viruses and other destructive programs, such as "Trojan Horses" and network "worms."

(b) The contractor must have in place an anti-virus procedure to ensure that media supplied is uncontaminated by malicious code.

(c) The contractor is required to scan all delivered software to insure it is free of malicious code prior to its installation or operation on USGS-owned computers or contractor-owned computers connected to USGS computer systems or networks. Contractors using diagnostics software disks or connecting to a non-USGS computer while performing repairs or upgrades to a USGS computer will scan the serviced computer's drive(s) to insure they are free of malicious code upon completion of the service call, or prior to return of serviced equipment, if servicing is performed off-site.

SECTION J. LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS

Document	**Title**
Attachment 1	Price Schedule
Attachment 2	Department of Labor Wage Determinations for Year One
Attachment 3	FISMA Requirements

SECTION K. REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS OF OFFERORS

K.1. DUNS Number and CAGE Code

Offeror's DUNS number and Cage Code shall be included on the 1449.

(End of provision)

K.2. 52.252-2 CLAUSES INCORPORATED BY REFERENCE. (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

http://www.acquisition.gov/far

http://www.ecfr.gov/cgi-bin/text-idx?SID=8fbe5c42498beb3bf0e8c741d81b297b&tpl=/ecfrbrowse/Title48/48cfr1452_main_02.tpl

52.204-7 SYSTEM FOR AWARD MANAGEMENT (OCT 2018)

52.204-13 SYSTEM FOR AWARD MANAGEMENT MAINTENANCE (OCT 2018)

52.204-16 COMMERICAL AND GOVERNMENT ENTITY CODE REPORTING (JUL 2016)

52.204-18 COMMERICAL AND GOVERNMENT ENTITY CODE MAINTENANCE (JUL 2016)

52.209-2 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS-REPRESENTATION (NOV 2015)

52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(End of clause)

K.3. OFFEROR REPRESENTATIONS AND CERTIFICATIONS

Per FAR 4.1102 Policy (a) Offerors and quoters are required to be registered in SAM at the time an offer or quotation is submitted in order to comply with the annual representations and certifications requirements… The Government will obtain the offerors Representation and Certifications from the offeror's registration in the System for Award Management (SAM). https://www.sam.gov.

If the Offeror has not completed the annual representations and certifications electronically, after 08/13/2020, then the offeror is encouraged to either update their representations and certifications electronically after 08/13/2020 or complete the following, (2) mandated representations and certifications. And, the Offeror shall provide the completed representations with the proposal package (These representations and certifications will not be counted in the 30-page non-price page limitation.)

K.4. 52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT.(AUG 2020)

(a) Definitions. As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Prohibition.

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i)Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii)Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i)Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii)Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for “covered telecommunications equipment or services”.

(d) Representation. The Offeror represents that—

(1)It ____will, ____ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information

required at paragraph (e)(1) of this section if the Offeror responds “will” in paragraph (d)(1) of this section; and

(2)After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—

It ____ does, _____ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds “does” in paragraph (d)(2) of this section.

(e) Disclosures.

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded “will” in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i)For covered equipment—

(A)The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B)A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C)Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii)For covered services—

(A)If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B)If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded “does” in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i)For covered equipment—

(A)The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B)A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C)Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii)For covered services—

(A)If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B)If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

K.5. 52.204-26 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION. (DEC 2019)

(a) Definitions. As used in this provision, "covered telecommunications equipment or services" has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c) Representation. The Offeror represents that it ___ does, ___ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

SECTION L. INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS

L.1. 52.252-2 CLAUSES INCORPORATED BY REFERENCE. (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

http://www.acquisition.gov/far

https://www.acquisition.gov/browse/index/far

52.237-10 IDENTIFICATION OF UNCOMPENSATED OVERTIME. (MAR 2015)

52.215-1 INSTRUCTIONS TO OFFERORS - COMPETITIVE ACQUISITION, (JAN 2017)

L.2. 52.215-1 INSTRUCTIONS TO OFFERORS - COMPETITIVE ACQUISITION, ALT I. (JAN 2017)

52.215-1(d) is hereby changed to "Offer expiration date. Proposals in response to this solicitation shall be valid for 180 calendar days".

L.3. 52.216-1 TYPE OF CONTRACT (APR 1984)

The Government contemplates award of an IDIQ contract resulting from this solicitation.

(End of provision)

L.4. 52.216-27 SINGLE OR MULTIPLE AWARDS (OCT 1995)

The Government intends to award a single award IDIQ contract under this solicitation.

(End of provision)

L.5. 52.222-46 EVALUATION OF COMPENSATION FOR PROFESSIONAL EMPLOYEES (FEB 1993)

(a) Re-competition of service contracts may in some cases result in lowering the compensation (salaries and fringe benefits) paid or furnished professional employees. This lowering can be detrimental in obtaining the quality of professional services needed for adequate contract performance. It is therefore in the Government's best interest that professional employees, as defined in 29 CFR 541, be properly and fairly compensated. As part of their proposals, offerors will submit a total compensation plan setting forth salaries and fringe benefits proposed for the professional employees who will work under the contract. The Government will evaluate the plan to assure that it reflects a sound management approach and understanding of the contract requirements. This evaluation will include an assessment of the offeror's ability to provide uninterrupted high- quality work. The professional compensation proposed will be considered in terms of its impact upon recruiting and retention, its realism, and its consistency with a total plan for compensation. Supporting information will include data, such as recognized national and regional compensation surveys and studies of professional, public and private organizations, used in establishing the total compensation structure.

(b) The compensation levels proposed should reflect a clear understanding of work to be performed and should indicate the capability of the proposed compensation structure to obtain and keep suitably qualified personnel to meet mission objectives. The salary rates or ranges must take into account differences in skills, the complexity of various disciplines, and professional job difficulty. Additionally, proposals envisioning compensation levels lower than those of predecessor contractors for the same work will be evaluated on the basis of maintaining program continuity, uninterrupted high-quality work, and availability of required competent professional service employees.

Offerors are cautioned that lowered compensation for essentially the same professional work may indicate lack of sound management judgment and lack of understanding of the requirement.

(c) The Government is concerned with the quality and stability of the work force to be employed on this contract. Professional compensation that is unrealistically low or not in reasonable relationship to the various job categories, since it may impair the Contractor's ability to attract and retain competent professional service employees, may be viewed as evidence of failure to comprehend the complexity of the contract requirements.

(d) Failure to comply with these provisions may constitute sufficient cause to justify rejection of a proposal.

(End of provision)

L.6. 1452.233-2 SERVICE OF PROTEST—DEPARTMENT OF THE INTERIOR (DEVIATION) JULY 1996

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

Donald Downey, ddowney@usgs.gov 303-236-9331
U.S. Geological Survey
Office of Acquisition and Grants
Attn: Don Downey
Denver Federal Center, DFC Bldg. 67
Denver, CO 80225

OR

Karen La Bouff-Kind
U.S. Geological Survey
Office of Acquisition and Grants
Denver Federal Center, DFC Bldg. 67
PO Box 25046, MS 204
Denver, Colorado 80225 Email: klabouff-kind@usgs.gov

(b) The copy of any protest shall be received at one of the addresses AND the corresponding email address above within one day of filing a protest with the GAO.

c) A copy of the protest served on the Contracting Officer shall be simultaneously furnished by the protester to the Department of the Interior Assistant Solicitor for Procurement and Patents, 1849 C Street, NW, Room 6511, Washington, D.C. 20240.

(End of provision)

L.7. JOINT VENTURE AGREEMENTS

Joint Ventures are allowable on competitive 8(a) set-asides, however, the joint venture agreement must be received by SBA prior to proposal due date and approved before award of any resulting contract. If you are contemplating a joint venture on this project, you must advise, in writing your assigned SBA Business Development Specialist (BDS) as soon as possible. It is also recommended that the agreement be submitted as soon as practicable to ensure compliance with established regulations. Any corrections and/or changes needed can be made only when your BDS has adequate time for a thorough review before the proposal due date.

NO CORRECTIONS AND/OR CHANGES ARE ALLOWED AFTER TIME OF SUBMISSION OF PROPOSAL OR BIDS.

(End of provision)

L.8. PROPOSAL SUBMITTAL LOCATION

Offeror shall submit electronic proposals via email to Don Downey, ddowney@usgs.gov and Karen La Bouff-Kind, klabouff-kind@usgs.gov. If documents are too large to be submitted via email, offerors shall send through electronic shared drive, giving the Government permissions to download the documents. All proposals shall be sent prior to the closing date/time listed in Block 9 of the SF1449.

(End of provision)

L.9. SUBMISSION OF OFFER – PROPOSAL ORGANIZATION AND FORMAT

Submit a proposal that conforms to the solicitation documents. By submission of an offer in accordance with the instructions provided in this section, the offeror unconditionally assents to the terms and conditions in this solicitation document and in any solicitation attachments. Submit a proposal that complies with the format, content, and fully addresses the evaluation factors of this solicitation. Offerors should carefully review this section prior to commencing proposal preparation.

The proposal shall consist of two separate volumes. Volume I – Technical Non-Priced Proposal and Volume II – Business and Price Proposal. Required contents of each volume are detailed below. For each volume submitted the proposal must clearly identify the solicitation number. The proposals must also contain offeror's contact and company information, including DUNS number, CAGE Code, Street Address, Phone Number, and information of the person authorized to negotiate, sign and responsible for the proposal.

Volume I – Technical Non-Priced Proposal is limited to thirty (30) one-sided pages. Offerors shall utilize a size of 81/2 x 11" document for responses to all technical non-priced factors. The font size shall be no smaller than 12-point Times New Roman, with the exception of Tables and Graphs which may have 10-point Times New Roman font. Cover letters and/or graphics are included in the page limitations. Dividers, table of contents and title pages are not included in the page limitation. There are three (3) non-priced factors for the technical portion of the proposal.

Volume II –Price Proposal shall include the following:

1. Standard Form 1449, Solicitation, Offer and Acknowledgement of Amendments.
2. Contract Price Schedule Labor Categories Worksheet - See Attachment 1

L.10. VOLUME I, NON-PRICE VOLUME INSTRUCTIONS

Offerors' proposals will be evaluated for Best Value to the Government based upon the following non-price or non-cost factors, which are of descending order of importance.

Volume I Non-Priced Factors:

- **Factor 1 Management Approach**
- **Factor 2 Past Performance**
- **Factor 3 Professional Employee Compensation Plan**

NOTE: If/when a proposal package does not include sufficient information to evaluate any one factor or subfactor, the entire proposal may be determined Non-Responsive.

The content of the Volume I shall be sufficiently specific, detailed, and complete to demonstrate clearly and fully that the offeror has a thorough understanding of the requirements for, and technical issues inherent in, the solicitation.

Each of the evaluation factors must be sufficiently complete to demonstrate an understanding of and an ability to comply with all the requirements referenced in the applicable solicitation and performance work statement. Clarity, completeness, and conciseness are essential. Additionally, the quality of the proposal will be evaluated in the context of being representative of the offeror's services.

In preparing the Volume I technical non-priced proposal, emphasis should be placed on brief, complete, and factual data in the areas set forth in the solicitation. Maximum use should be made of tables and information summaries in describing the proposed efforts.

The Management, Past Performance and Professional Employee Compensation Plan shall consist of the information specified for each evaluation factor and subfactor listed below.

No cost or pricing information shall be included in Volume I.

Factor 1 - Management Approach

All subfactors are equal in importance and equally weighted.

The offeror shall provide information which demonstrates proposed general management approach and how the offeror plans to manage the requirements of this contract. Please provide specific narratives to address the following in sufficient detail to allow the Government to evaluate the proposal.

The proposed management approach shall address the following:

Subfactor 1.1 – Management Plan

The offeror shall provide its proposed general Management approach and plans in narrative, which is included in the 30-page limit.

Provide information which demonstrates your approach for managing the requirements of this contract as well as describes your experience and successes in managing similar (in terms of contract size, period of performance, as well as the variety and level of complexity of services performed) contracts. Explain the processes and practices you will use for effective and efficient oversight of the contract and all task orders. Describe your experience and successes in management processes and practices, including the overall management structure, proposed key personnel's roles within the management structure, recruitment processes, and how you will maintain well trained and experienced technical workforce. Explain the processes you will employ to determine a proper skill mix and make skill mix assignments and adjustments for new or changing work requirements. Describe your experience and successes in using these management processes and practices in while having staff flexibility and commitment to perform work assignments on short notice based on changing task priorities.

Subfactor 1.2 – Transition Plan

The offeror shall provide its proposed Transaction Plan approach in a narrative, which is included in the 30-page limit.

Provide information which demonstrates your approach for contract transition as well as describe your experience and successes in transitioning similar (in terms of contract size, period of performance, as well as the variety and level of complexity of services performed) contracts.

Explain your processes for training incumbent or new staff on corporate practices and general contract information prior to commencement of performance. Explain the processes you will use for coordination with incumbent or new staff on compensation and benefits. Explain the processes you will use for coordination with Government project management in transitioning incumbent staff.

Subfactor 1.3 – Key Personnel

The offeror shall provide its proposed Key Personnel's role in narrative, which is included in the 30-page limit.

Provide brief position descriptions including major duties, authorities, and qualifications and experience requirements for the key personnel who will be responsible for the management and administration of the subject IDIQ contract and its task orders. Please refer to the contract Price Schedule Attachment 1 for the general description of duties and qualifications. Should the offeror utilize and include the resume of the key personnel, the resume(s) will not be counted towards the 30-page limit. With the resume, please attach a signed statement of availability for each proposed key personnel. The signed statement will not count towards the 30-page limit.

Factor 2 – Past Performance

All subfactors are equal in importance and equally weighted.

Offerors may choose to include past performance experience information, included in the 30-page limit or offerors may rely on CPARS reports, which the Government will collect and provide to the Technical Evaluation Committee (TEC).

The offeror shall provide information which demonstrates successful past experience in the following areas:

Subfactor 2.1 - Quality of Product or Service

Offeror shall provide a narrative to describe how offeror has handled past experience in performing compliance with contract requirements, technical excellence; responsiveness and accuracy of communication; assignment of qualified and appropriate personnel; proactive in hiring, correcting issues and improvement of systems; creative strategies and plans for development and maintenance. Describes your past performance experience and successes handling quality of products or service (in terms of contract size, period of performance, as well as the variety and level of complexity of services performed) contracts.

Subfactor 2.2 Business Relations and Customer Service

Offeror shall provide a narrative to describe how the offeror has effectively handled past experience in accountability for employee performance; business-like concern for customer's interests; reasonable/cooperative behavior; flexibility while maintaining high employee morale; maintain cooperative relation with subcontractors/subconsultants; team approach with the customer; handling deliverable issues; satisfaction with the contractor's services; customer feedback and overall customer interactions initiative (in terms of contract size, period of performance, and well as the variety and level of complexity of services performed) contracts.

References, (included in the 30-page limit.) Offerors shall submit no more than three (3) references for the same or similar services to the Section C Work Statement requirements performed during the past three years. Each reference shall include: the company or agency name, address, contract or order number, point(s) of contract phone number and email address(es). As part of Past Performance, any information concerning offeror's past projects, including the contact information of the project owner as a reference should be submitted. The reference information is limited to the offeror's past project performance; thus, the Government will not consider references' information/comments on any vendor(s) other than the offeror.

The Government reserves the right to limit the number of references it ultimately contacts and to contact references or use sources other than those provided by the offeror to obtain information related to past performance. References may be from USGS, other government agencies or commercial agencies/firms.

References provided may be contacted by the Government for verification or additional information. The references' responses will be used in the evaluation of the offeror's proposal. The Government will treat each client reference's response as Source Selection Sensitive in accordance with FAR 3.104. An Offeror will have the opportunity to respond to negative past performance information if the Offeror has not previously had an opportunity to respond to it.

The Government will collect information from CPARS.gov, which will be used as a source of past performance information in the source selection process, in addition to any other past performance information required under this solicitation. The offeror does not need to submit CPARS report(s). CPARS affords the contractor an opportunity to respond to all past performance reports; thus, the Government will not request or require Offeror comments for negative CPARS reports. However, Offerors may make comments about their CPARS reports, which shall be included in their 30-page limit.

Offerors with no record of relevant past performance must submit a signed and dated statement to that effect, which shall be included in their 30-page limit. Proposals with no past performance provided may be considered "Neutral", neither positive nor negative.

Factor 3 – Professional Employee Compensation Plan

The offeror shall provide the Professional Employee Compensation Plan, as a separate document, which is not included in the 30-page limit. The information provided under the Total Professional Employee Compensation Plan will be evaluated by the Government.

The offeror shall provide its Professional Employee Compensation Plan to address the following:

The offerors shall provide a total compensation plan including offeror's compensation structure, salaries, and fringe benefits information proposed for the professional employees who will work under the contract. Explain your processes and practices you will use to employ and retain highly skilled professionals in order to provide un-interrupted high-quality work for the subject contract. The Professional Employee Compensation Plan is limited to the offeror's company.

Additional Volume I Non-Price Support Documents

The following documentation is required; but does not count against the 30-page limit.

1. Section K, Representations, Certifications and other Statements of Offerors – Per FAR 4.1102 Policy (a) Offerors and quoters are required to be registered in SAM at the time an offer or quotation is submitted in order to comply with the annual representations and certifications requirements… The Government will obtain the offerors Representation and Certifications from the offeror's registration in the System for Award Management (SAM). https://www.sam.gov. If the Offeror has not completed the annual representations and certifications electronically, after 08/13/2020, then the offeror is encouraged to either update their representations and certifications electronically after 08/13/2020 or complete the (2) mandated representations and certifications in Section K. And, the Offeror shall provide the completed representations with the proposal package (These representations and certifications will not be counted in the 30-page non-price page limitation.)

2. General References – Provide listing of reference information related to the offeror's financial institutions, creditors, insurance companies, subconsultants, and suppliers. Information provided may be used in making a determination of responsibility pursuant to FAR 9.103.

L.11. Volume II – PRICE PROPOSAL INSTRUCTIONS: Business and Price Proposal

Volume II, Price Proposal shall include the following:

1. Standard Form 1449, Solicitation, Offer, and Award – Complete blocks 30a. b. and c. An official having the authority to contractually bind the offeror's company must sign the SF 1449 in accordance with the procedures prescribed in FAR 4.102.

2. Acknowledgement of Amendments - Acknowledge all solicitation amendments using one of the methods set forth in Block 11 of Standard Form 30.

3. Contract Price Schedule Labor Categories Worksheet - See Attachment 1 completed with the fully burdened hourly labor rate, that include base wages, overhead, general and administrative expenses, and profit for each category of labor. In order to be considered for award, a fully burdened hourly labor rate must be provided for every hourly rate block on the Attachment 1 worksheet. All four tabs (Key Personnel, Denver, Reston, and Rolla) and the columns (SCA/PS, SCA Occupational Code & Title, Fed. Grade for SCA, Year 1-5 rates and 6-month extension) within each tab must be completed in the Attachment 1 worksheet.
   Offeror must submit a copy of their price proposal in a usable MS Excel format.

L.12. EVALUATION FACTOR - PRICE

The fixed hourly labor rates proposed in the pricing sheet at Attachment 1 will be evaluated. The individual fixed hourly labor rates as well as the total sum of all fixed hourly labor rates for each labor category, location, and contract year will be assessed for price reasonableness in comparison amongst the other offerors and the government estimate.

Based on historical ordering, the most-utilized labor categories are listed in Attachment 1 Price Schedule. The USGS encourages discounted hourly rates for these labor categories identified in Attachment 1 Price Schedule.

In accordance with clause 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts), for services subject to the Act, the fixed hourly labor rates may be adjusted as a result of the conditions provided in the clause. Therefore, the Contractor warrants that the fixed hourly labor rates that are subject to the Act do not include any allowance for any contingency to cover increased costs for which adjustment is provided under this clause.

In order to be considered for award, a fully burdened hourly labor rate must be provided for every hourly rate on the Attachment 1 Price Schedule, which has (4) spreadsheet/worksheet tabs: Reston VA, Rolla MO, Denver CO, and Key Personnel.

L.13. GS2101 INQUIRIES

Offerors shall address all questions via e-mail to BOTH klabouff-kind@usgs.gov AND ddowney@usgs.gov. The offeror must include the company name and solicitation number in the subject line of the email. The question(s) must include the page number, section number, and

paragraph number that pertains to the offeror's question(s). Questions will be evaluated for response, and if needed, questions and responses will be addressed by amendment to the solicitation posted at https://beta.sam.gov/search?index=opp prior to the solicitation closing date.

Questions received after 10/14/2020 1700 ET will be considered late and may not receive a response.

Prospective offerors are cautioned against contacting Government technical personnel regarding this solicitation prior to award of this procurement. If such a contact occurs and is found to be prejudicial to competing offerors, the offeror making such a contact may be excluded from award consideration.

(End of provision)

L.14. GS2121 PRICING OF OPTIONS—SERVICE CONTRACT ACT ADJUSTMENTS APRIL 2006

(a) The offeror shall submit prices for the option periods by assuming that the minimum hourly wages and fringe benefits established by the Administrator, Wage and Hour Division, U.S. Department of Labor, for the initial base period of performance will apply throughout the life of the contract. Future adjustments for wage and fringe benefit cost increases resulting from incorporation of Wage Determination increases will be made in accordance with FAR 52.222-43, Fair Labor Standards Act and Service Contract Act--Price Adjustment (Multiple Year and Option Contracts).

(b) Projected out year increases for positions exempt from the Service Contract Act and for other costs must be included in the contractor's initial proposal.

(End of provision)

SECTION M. EVALUATION FACTORS FOR AWARD

M.1. 52.212-2 EVALUATION – COMMERICAL ITEMS (OCT 2014)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other non-price factors considered. The following non-price factors shall be used to evaluate offers: Factor 1: Management Approach, Factor 2: Past Performance, and Factor 3: Professional Employee Compensation Plan. (Listed in the descending order of importance.) The non-price factors, when combined, are significantly more important than price.

(b) Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

M.2. BASIS FOR AWARD FROM EVALUATION FACTOR.

The Government will use a best value tradeoff process for the source selection. Award will be made to the responsible offeror whose offer conforms to the solicitation requirements and provides the best value to the Government considering all evaluation factors combined as detailed below.

M.3. EVALUATION PROCESS

A Technical Evaluation Committee (TEC) comprised of Government personnel will evaluate proposals. The technical evaluation and rating of proposal will be conducted in strict confidence. The number and identities of offerors will not be revealed to anyone not involved in the evaluation and award process or to other offerors.
The proposals will be evaluated against the factors set forth in this solicitation. Price portion of proposals will be evaluated independently of technical portion of proposals. The TEC will not have access to price information until completion of the technical evaluations of the proposals. After completion of the technical and price evaluations, the TEC will make an award recommendation based on the evaluations to the Source Selection Authority (SSA). The SSA will then consider all proposals and the evaluation factors stated herein, including assessment of the degree of risk associated with the proposals, to determine the offer that provides the overall best value to the Government.

M.4. EVALUATION

The Government may evaluate offers and award a contract without discussions with offerors. Therefore, the offeror's initial offer should contain the offeror's best terms from a price and technical standpoint. However, the Government reserves the right to conduct discussion if later determined by the Contracting Officer to be necessary.

The contract resulting from this solicitation will be awarded to the offeror whose offer, conforming to the solicitation requirements, is determined to provide the "best value" to the Government.

The proposals will receive a preliminary review to determine whether the proposal contains sufficient information, as required by section L, to allow Government to perform a meaningful evaluation. If the results of this preliminary review indicated that the proposal lacks sufficient information to allow a meaningful evaluation to be conducted, the SSA may eliminate the proposal from further evaluation and consideration for award. Any offeror's proposal eliminated at this stage from further evaluation or consideration forward will be notified in accordance with FAR 15.503.

Offerors that represent the most thorough understanding, realistic and comprehensive approach for the entire project, will be rated more favorably. It should be noted that price does not have a finite numerical weight. The non-price factors will be combined for non-price merit, which is of greater value/importance than Price. However, price is an important factor and should be considered when preparing proposals.

The Attachment 1 Price Schedule Column F is the Estimated Annual Quantities will be used for price/cost evaluation and analysis for price reasonableness (identify if a price is too high) and price realism (identify if a price is too low) ONLY. There are no guarantees of labor category quantities for this IDIQ contract. The estimated quantities will be applied to all five years and the up-to-six months extension for an estimated sum for the total 5.5-year period. The proposed prices will be compared to the independent Government cost estimates and to the other vendors

pricing for both price reasonableness and price realism analysis.

M.5. Award Decision:

The award of this requirement shall be made using the procedures found in Federal Acquisition Regulations (FAR) for commercial evaluation process in FAR Part 12, as well as Part 15. Award shall be made to the Offeror whose proposal, conforming to this solicitation, is determined to be the most advantages to the Government, cost/price score and the other non-cost or non-price factors. In determining which proposal offers the greatest value or advantage to the Government, overall non-price merit will be considered more important than price/cost score. The degree of importance of price/cost score as an evaluation factor will increase with the degree of equality in the non-price merits of the proposal. Between acceptable proposals with a significant difference in non-price merit**,** a determination will be made as to whether the additional non-price merit or benefits reflected by a higher price/cost scored proposal warrants the anticipated price/payment represented by the additional price or cost score.

M.6. VOLUME I, NON-PRICE VOLUME EVALUATION

Offerors' proposals will be evaluated for Best Value to the Government based upon the following non-price or non-cost factors, which are of descending order of importance.

Volume I Non-Priced Factors:

- **Factor 1 Management Approach**
- **Factor 2 Past Performance**
- **Factor 3 Professional Employee Compensation Plan**

NOTE: If/when a proposal package does not include sufficient information to evaluate any one factor or subfactor, the entire proposal may be determined Non-Responsive.

The content of the Volume I shall be sufficiently specific, detailed, and complete to demonstrate clearly and fully that the offeror has a thorough understanding of the requirements for, and technical issues inherent in, the solicitation.

Each of the evaluation factors must be sufficiently complete to demonstrate an understanding of and an ability to comply with all the requirements referenced in the applicable solicitation and performance work statement. Clarity, completeness, and conciseness are essential. Additionally, the quality of the proposal will be evaluated in the context of being representative of the offeror's services.

In preparing the Volume I technical non-priced proposal, emphasis should be placed on brief, complete, and factual data in the areas set forth in the solicitation. Maximum use should be made of tables and information summaries in describing the proposed efforts.

The Management, Past Performance and Professional Employee Compensation approach shall consist of the information specified for each evaluation factor and subfactor listed below.

No cost or pricing information shall be included in Volume I.

Factor 1 - Management Approach

All Factor 1 subfactors are equal in importance and equally weighted.

The offeror's responses shall be evaluated based on the information that demonstrates sufficient details in general management approach, transition plan, and key personnel to the following:

Subfactor 1.1 – Management Plan

Consideration of approach, experience, and demonstrated successes will be given to: proposed processes and practices for oversight of the contract and task orders; proposed processes for recruiting and maintaining a trained and experienced technical workforce at various skill levels to bring the right skill to the job as required by the work; and proposed processes for staff flexibility an commitment to perform work assignments on short notice based on changing task priorities.

Subfactor 1.2 – Transition Plan

Proposals will be evaluated based on the offeror's approach to contract transition and experience/demonstrated successes with similar (in terms of contract size, period of performance, as well as the variety and level of complexity of services performed) contract transition, including: Training incumbent staff on corporate practices and general contract information prior to commencement of performance; coordination with incumbent staff on compensation and benefits; plan for employment of service employees under the predecessor contract whose employment will be terminated as a result of this contract; and coordination with Government project management in transitioning incumbent staff.

Subfactor 1.3 – Key Personnel

Key personnel proposed to manage and administer the IDIQ contract and its task orders will be evaluated based on the attributes of qualifications and experience and applying these attributes to the personnel's primary duties in effective management of the IDIQ contract and task orders.

Key personnel resume(s) will be evaluated based on the individual's qualifications and experience relative to: the mission of U.S. Geological Survey; specific duties the individual will perform under the contract; and complementary specialty skill and experience areas such as IDIQ/Task Order contracting, project/task management, systems/IT architecture, Amazon Web services (AWS) migration, scientific, and technical services.

Factor 2 – Past Performance

All subfactors are equal in importance and equally weighted.

The Government will give greater value to the offeror's performance as a prime contractor than to the offeror's performance as a subcontractor.

The offeror's responses shall be evaluated based on the information that demonstrates sufficient details in past performance experience in the areas of subfactors below:

Subfactor 2.1 - Quality of Product or Service

The past performance experience will be evaluated based on Offeror ability to handle, address, and mitigate challenges dealing with compliance with contract requirements, technical excellence; responsiveness and accuracy of communication; assignment of qualified and appropriate personnel; proactive in hiring, correcting issues and improvement of systems; creative strategies and plans for development and maintenance.

Subfactor 2.2 Business Relations and Customer Service

The past performance experience in how an offeror has effectively managed the accountability for employee performance; business-like concern for customer's interests; reasonable/cooperative behavior; flexibility while maintaining high employee morale; maintain cooperative relation with

subcontractors/subconsultants; team approach with the customer; handling deliverable issues; satisfaction with the contractor's services; customer feedback and overall customer interactions initiatives.

References and CPARS

Past performance is an indicator of expected future performance. Past performance is a measure of the degree to which an offeror satisfied its customers in the past and complied with the PWS, contract schedule, and contract terms and conditions. Past performance is also a measure of the risk of performance associated with the offeror. The Government will assess the offeror's record of past performance on similar contracts as an indicator of success under this requirement.

References provided may be contacted by the Government for verification or additional information. The references' responses will be used in the evaluation of the offeror's proposal. The Government will treat each client reference's response as Source Selection Sensitive in accordance with FAR 3.104. An Offeror will have the opportunity to respond to negative past performance information if the Offeror has not previously had an opportunity to respond to it. Offerors without references will be determined as "Neutral" neither positive nor negative.

In addition, any information obtained by the Government from references outside of the offeror's proposal may also be used, in a similar manner, in the technical evaluation of the offeror's proposal to the extent appropriate. Past performance information provided by references, from Government records, or from other than the sources identified by the offeror may be used in the evaluation under any or all applicable evaluation factors.

The reference information is limited to the offeror's past project performance; thus, the Government will not consider references' information/comments on any vendor(s) other than the offeror.

All past performance information will be used for both the responsibility determination and the best value decision.

Factor 3 – Professional Employee Compensation Plan

The information provided under the Total Professional Employee Compensation Plan will be evaluated by the Government to determine if the offeror's plan and supporting documentation demonstrate the offeror's ability to meet the provision of FAR 52.222-46 Evaluation of Compensation for Professional Employees, incorporated by reference.

OFFERORS ARE CAUTIONED THAT FAILURE TO SUBMIT A TOTAL PROFESSIONAL EMPLOYEE COMPENSATION PLAN AS OUTLINED ABOVE MAY CAUSE:

Adverse assessment of the proposal;

No further evaluation of the proposal; or

Rejection of the proposal as Non-Responsive.

Additional Volume I Non-Price Support Documents.

The below Non-Price Support Documents will be used for both the responsibility determination and the best value decision.

1. Section K, Representations, Certifications and other Statements of Offerors – Complete all required representations and certifications. Current, active registration at www.SAM.gov is a requirement of this contract. The Government highly recommends completing SAM registration before submitting a proposal.

2. General References – Provide listing of reference information related to the offeror's financial institutions, creditors, insurance companies, subconsultants, and suppliers. Information provided may be used in making a determination of responsibility pursuant to FAR 9.103.

M.7. Volume II – PRICE PROPOSAL EVALUATION:

Volume II, Price Proposal shall include the following in order to be evaluated for Best Value to the Government:

1. Standard Form 1449, Solicitation, Offer, and Award – Complete blocks 30a. b. and c. An official having the authority to contractually bind the offeror's company must sign the SF 1449 in accordance with the procedures prescribed in FAR 4.102.
2. Acknowledgement of Amendments - Acknowledge all solicitation amendments using one of the methods set forth in Block 11 of Standard Form 30.
3. Contract Price Schedule Labor Categories Worksheet - See Attachment 1 Price Schedule, completed with the fully burdened hourly labor rate, that include wages, overhead, general and administrative expenses, and profit for each category of labor. In order to be considered for award, a fully burdened hourly labor rate must be provided for every hourly rate block that is not shaded on the applicable Attachment 1 worksheet. Offeror must submit a copy of their price proposal in a usable MSExcel format.

NOTE: If an offeror does not provide pricing for **all** the labor categories listed in Attachment 1 Price Schedule worksheet, the proposal may be deemed Non-Responsive, and receive no further evaluation.

M.8. EVALUATION Factor - Price

The fixed hourly labor rates proposed in the pricing sheet at Attachment 1 will be evaluated. The individual fixed hourly labor rates as well as the total sum of all fixed hourly labor rates for each labor category, location, and contract year will be assessed for price reasonableness in comparison amongst the other offerors and the government estimate.

Based on historical ordering, the most-used labor categories are listed in Attachment 1 Price Schedule. The USGS encourages discounted hourly rates for these labor categories in Attachment 1 Price Schedule.

In accordance with clause 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts), for services subject to the Act, the fixed hourly labor rates may be adjusted as a result of the conditions provided in the clause. Therefore, the Contractor warrants that the fixed hourly labor rates that are subject to the Act do not include any allowance for any contingency to cover increased costs for which adjustment is provided under this clause.

NOTE. The Government may determine that an offer is unacceptable if the proposed labor category prices or escalation rates are significantly unbalanced.

In order to be considered for award, a fully loaded hourly labor rate must be provided for every hourly rate on the Attachment 1 Price Schedule, which has four (4) spreadsheet/worksheet tabs: Key Personnel, Reston VA, Rolla MO and Denver CO.

The Attachment 1 Price Schedule Column F is the Estimated Annual Quantities will be used for price/cost evaluation and analysis for price reasonableness (identify if a price is too high) and price realism (identify if a price is too low) ONLY. There are no guarantees of labor category quantities for this IDIQ contract.

The estimated quantities will be applied to all five years and the up-to-six months extension for an estimated sum for the total 5.5-year period. The proposed prices will be compared to the independent Government cost estimates and to the other vendors pricing for both price reasonableness and price realism analysis. The Estimated Annual Quantities column will be removed from the Price Schedule of the awarded contract.

M.9. GS2330 COMPETITIVE RANGE DETERMINATION (AUG 2001)

If discussions are deemed necessary in accordance with GS2335 Evaluation and Award—Negotiated:

(a) Following the technical evaluation of proposals, a proposal may be eliminated by the Contracting Officer as being technically unacceptable. For those proposals not eliminated, the Contracting Officer will establish a competitive range of offerors to participate in negotiations. A proposal will be excluded from the competitive range if it contains a major technical deficiency, is so deficient in overall technical content or merit as to preclude meaningful evaluation or negotiations, is not price competitive, or otherwise has no reasonable chance of being selected for award. Technical proposals which are marginally acceptable will not automatically be excluded from consideration if they are reasonably susceptible to being made acceptable and are otherwise competitive. When the nature and extent of revisions required to make a proposal acceptable would be tantamount to submission of a new proposal, the proposal will be excluded from the competitive range.

(b) The competitive range may be limited for purposes of efficiency. The Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

(c) Offerors in the competitive range will be advised of any significant weaknesses or deficiencies in their proposals and provided an opportunity to improve their offers.
(End of provision)

M.10. GS2335 EVALUATION AND AWARD—NEGOTIATED (NOV 2014)

(a) The government retains the right to award a contract on the basis of the original submissions without discussions or call for final revised offers. So verify you have all required documentation prior to package submission. Offerors are urged to submit their best offer with their original proposal. Discussions are not intended but may be conducted as deemed necessary by the Contracting Officer.

(b) The Contracting Officer will screen proposals to identify and eliminate any proposals that are so incomplete as to preclude a meaningful evaluation of responsiveness and non-price evaluation factors.

(c) The remaining proposals will be evaluated based upon price and the non-price evaluation factors provided in the clause at basis for award from evaluation factor.

(End of provision)